

Franciscus Dylan Rosario,
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E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**NOTICE OF MOTION AND MOTION
FOR LEAVE TO FILE SECOND
AMENDED COMPLAINT**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

TO ALL PARTIES AND THEIR COUNSEL OF RECORD:

PLEASE TAKE NOTICE that on May 12, 2026, at 9:00 a.m. or as soon thereafter as the matter may be heard in Department 301 of this Court, located at 400 McAllister Street, San Francisco,

1 California 94102, before the Honorable Garrett L. Wong, Plaintiff Franciscus Dylan Rosario will
2 and hereby does move for an order granting leave to file the Second Amended Complaint attached
3 as Exhibit 1 to the concurrently filed Declaration of Franciscus Dylan Rosario.

4 **STATUTORY BASIS**

5 This motion is made pursuant to Code of Civil Procedure sections 472, 473(a)(1), and 576, and
6 California Rules of Court, rule 3.1324(a) and (b).

7 **GROUND FOR THE MOTION**

8 This motion is based on the following grounds: * Newly-discovered evidence, specifically defense
9 counsel's April 16, 2025 admission (Trial Day 7) regarding the "provided by Dolan" origins of
10 critical trial exhibits; * Accrual of the underlying fraud claims on discovery in January 2025 (Code
11 of Civil Procedure section 338(d)); * Refinement of the extrinsic-fraud gravamen, stripping trial-
12 focused allegations and isolating pre-adjudicative concealment and deception; * The addition of
13 agency liability allegations identifying CSAA Insurance Exchange as the institutional principal
14 directing and ratifying the litigation conduct; * The addition of a Seventh Cause of Action for
15 constructive fraud (Civ. Code § 1573) and refinement of the Fourth Cause to plead civil conspiracy
16 as a joint-liability theory under Applied Equipment Corp. v. Litton Saudi Arabia Ltd. (1994) 7
17 Cal.4th 503; and * The complete absence of prejudice to Defendants, as no trial date has been set
18 and the action remains in its early stages.

19 **RELIEF REQUESTED**

20 Plaintiff respectfully requests that the Court: 1. Enter an order granting Plaintiff leave to file the
21 Second Amended Complaint; 2. Direct the clerk to deem the Second Amended Complaint filed
22 and served as of the date of the order; and 3. Set a responsive-pleading deadline of 30 days under
23 Code of Civil Procedure section 471.5(a).

24 This motion is based upon this Notice of Motion, the concurrently filed Memorandum of Points
25 and Authorities, the Declaration of Franciscus Dylan Rosario, the Request for Judicial Notice, the
26 [PROPOSED] Order Granting Leave, the pleadings and papers on file in this action, and upon such
27 other matters as may be presented to the Court at the time of the hearing.

Dated: April 19, 2026

A handwritten signature in blue ink, appearing to read "F. Rosario".

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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**MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT OF
MOTION FOR LEAVE TO FILE
SECOND AMENDED COMPLAINT**

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I. INTRODUCTION AND SUMMARY OF ARGUMENT

I.A. INTRODUCTION — WHY THIS AMENDMENT MATTERS

This motion seeks leave to file a Second Amended Complaint (“SAC”) to conform the pleadings to a certified record that proves a fraud was perpetrated upon the Court. At the heart of this action is a sequence of events where defense counsel, acting as officers of the court, procured a series of structural rulings against Plaintiff by representing that they had never received critical evidence—representations that the record now proves were false.

Record sequence relevant to leave 1. The Court’s articulated reliance on defense representations (Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7): > “I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven’t heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly.”

2. Related pretrial and trial rulings (January–April 2025): The certified record reflects the following rulings and orders (among others) occurring in the same general timeframe: * **MIL No. 1 denied** (Jan. 27, p. 41:3–11). * **911 CDs excluded** (Jan. 27, p. 38:22–25). * **Continuance denied** (Feb. 18, p. 181). * **Burden allocation ruling** (Feb. 28, p. 293:1–3).

3. Subsequent representation on the record regarding provenance (RT 7, Apr. 16, 2025, p. 213, ll. 13–15): > “Sure. They were provided by Dolan. He has had them for whatever, sure.” The proposed amendment aligns the pleading with this record sequence and the theories pleaded in the Second Amended Complaint, including extrinsic fraud and related claims, for the Court’s consideration on the motion for leave to amend.

I.B. SUMMARY OF ARGUMENT

The SAC accurately reflects newly discovered facts regarding the underlying 2025 trial and streamlines the equitable fraud claims. The proposed amendments do not alter the core grievance—that the underlying judgment was procured through extrinsic fraud—but rather conform the pleadings to the April 16, 2025 admission by defense counsel regarding the origins of critical evidence,

1 specify the timeline of the institutional file transfer, and formally add agency allegations against
2 the institutional principal, CSAA Insurance Exchange.

3 California policy strongly favors the resolution of disputes on their merits and dictates great liber-
4 ality in allowing amendments to pleadings at any stage of the proceeding. Code of Civil Procedure
5 sections 473(a)(1) and 576 empower the Court to grant leave to amend, and California Rules of
6 Court, rule 3.1324 the procedural mechanism. Because this action is in its infancy and no trial date
7 is set, the amendments will cause no prejudice to Defendants. Good cause exists to grant leave
8 under Rule 3.1324.

9 **II. PROCEDURAL BACKGROUND**

10 Plaintiff filed the initial Complaint in this independent equitable action on December 23, 2025.
11 Following initial procedural steps, Plaintiff filed a First Amended Complaint (FAC) to structure
12 the fraud and deceit claims against the defense counsel and institutional parties involved in the
13 underlying case (Rosario v. Abdelhalim, Case No. CGC-21-594102).

14 The underlying action involved a substitution of counsel filed on May 4, 2023, transitioning the
15 defense from Carbone, Smith & Koyama, LLP (CSK) to Phillips, Spallas & Angstadt, LLP (PSA).
16 The present case challenges conduct relating to the transmission of the defense file and represen-
17 tations made to the tribunal during January through April 2025.

18 Plaintiff now seeks leave to file a Second Amended Complaint to incorporate precise evidentiary
19 admissions made on the record during the underlying trial—specifically the April 16, 2025 “pro-
20 vided by Dolan” admission—and to clarify the estoppel, agency, and extrinsic-fraud mechanisms.

21 **III. LEGAL STANDARD FOR LEAVE TO AMEND**

22 Code of Civil Procedure section 473(a)(1) provides that the court may, in furtherance of justice,
23 and on any terms as may be proper, allow a party to amend any pleading. Code of Civil Proce-
24 dure section 576 states that any judge, at any time before or after commencement of trial, in the
25 furtherance of justice, and upon such terms as may be proper, may allow the amendment of any
26 pleading.

27 California courts apply a policy of “great liberality” in allowing amendments to pleadings at any
28 stage of the proceeding so that cases may be justly resolved on their merits. (Mabie v. Hyatt (1998))

61 Cal.App.4th 581, 596; Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530.) Absent prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will apply. (Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 761.)

California Rules of Court, rule 3.1324 requires that a motion to amend be accompanied by a declaration specifying: 1. The effect of the amendment (rule 3.1324(b)(1)); 2. Why the amendment is necessary and proper (rule 3.1324(b)(2)); 3. When the facts giving rise to the amended allegations were discovered (rule 3.1324(b)(3)); and 4. The reasons why the request for amendment was not made earlier (rule 3.1324(b)(4)).

The moving party must also state what allegations are proposed to be added or deleted and where they are located. (Rule 3.1324(a)(2)–(3).)

IV. THE PROPOSED AMENDMENTS SATISFY CRC 3.1324(A)

The proposed Second Amended Complaint restructures and refines the allegations. The amendments specifically: 1. **Add specific pre-adjudicative concealment allegations:** Incorporating the 883-day silence window and the May 4, 2023 substitution file-transfer omission (SAC ¶¶ 29–39). 2. **Incorporate the April 16, 2025 admission:** Adding the specific transcript reference to Navaratnasingham’s “provided by Dolan” admission (SAC ¶¶ 58–63). 3. **Add CSAA agency allegations:** Specifying CSAA Insurance Exchange’s role in directing, funding, and ratifying the litigation conduct outside the normal insurer role (SAC ¶¶ 48–57). 4. **Refine doctrinal framing:** Adding express estoppel by silence (Evid. Code § 623), authentication by acquiescence (Evid. Code § 1414(b)), and extrinsic-fraud jurisdictional footing (SAC ¶¶ 103–113). 5. **Add Count 7 (constructive fraud) and refine Count 4:** The proposed SAC adds a Seventh Cause of Action for constructive fraud under Civ. Code § 1573 (Assilzadeh v. California Federal Bank (2000) 82 Cal.App.4th 399, 415), pleaded in the alternative to Counts 2 and 3, and retitles the Fourth Cause to include civil conspiracy as a **joint-liability theory** attaching to underlying torts under Applied Equipment Corp. v. Litton Saudi Arabia Ltd. (1994) 7 Cal.4th 503 (not a freestanding conspiracy tort).

These changes do not alter the fundamental nature of the dispute but rather conform the pleading to the precise evidentiary timeline of the underlying case, ensuring the Court can adjudicate the

1 actual controversy.

2 **V. GOOD CAUSE UNDER CRC 3.1324(B)**

3 Plaintiff has established good cause for the amendment through the concurrently filed Declaration
4 of Franciscus Dylan Rosario, which details: * **When facts were discovered:** The facts underlying
5 the extrinsic fraud materialized primarily between January 17, 2025 (when the Motions in Limine
6 were filed) and April 16, 2025 (the Day 7 admission). The **February 28, 2025** hearing supplied
7 the express officer-of-the-court reliance ruling (Hr’g Tr. pp. 291:26–292:7) that anchors the duty-
8 of-candor element of constructive fraud (Civ. Code § 1573) pleaded in Count 7. The April 16
9 admission pairs with that ruling as the record proof that reliance was misplaced. The necessity
10 of specifying the agency role of CSAA and the precise mechanics of the file transfer became
11 clear through continued record review and legal research post-filing. * **Why the request was not**
12 **made earlier:** The original and First Amended Complaints were filed promptly to preserve rights.
13 The detailed transcript parsing and doctrinal framing required to accurately plead an independent
14 equitable action under Kougasian v. TMSL, Inc. required the time intervening since the last
15 pleading to properly synthesize. * **Necessity:** The amendments are necessary to provide the Court
16 with the correct factual chronology (including the 883-day silence window) and to ensure that the
17 pleading squarely addresses the elements of extrinsic fraud and agency liability.

18 **VI. NO PREJUDICE TO DEFENDANTS**

19 There is no prejudice to Defendants in allowing this amendment. The case was filed on December
20 23, 2025, and remains in its early stages. No trial date has been set, discovery has not closed, and
21 the amendments do not inject a radically new set of facts that would require defense counsel to
22 conduct a vastly different factual investigation. The core facts—what was said and done during the
23 underlying case—remain identical. Denying leave to amend would only force Plaintiff to rely on
24 a less accurate pleading, contravening the policy of resolving cases on their merits.

25 **VII. CONCLUSION**

26 For the foregoing reasons, Plaintiff respectfully requests that the Court grant the Motion for Leave
27 to File the Second Amended Complaint.

Dated: April 19, 2026

A handwritten signature in blue ink, appearing to read "F. Rosario".

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

I,

**DECLARATION OF FRANCISCUS
DYLAN ROSARIO IN SUPPORT OF
MOTION FOR LEAVE**

Franciscus Dylan Rosario, declare as follows:

1. I am the Plaintiff in this action, representing myself in pro per. I have personal knowledge of the facts set forth in this declaration, and if called as a witness, I could and would testify competently to them.
2. This declaration is submitted pursuant to California Rules of Court, rule 3.1324, in support of my Motion for Leave to File the Second Amended Complaint (SAC).
3. **What amendments the proposed SAC makes:** The proposed SAC restructuring refines the allegations to focus exclusively on extrinsic fraud. Specifically, the amendments add:

- Allegations detailing the 883-day period of silence between August 18, 2022, and January 17, 2025, during which prior defense counsel raised no authenticity challenge (SAC ¶¶ 29–33, 68–80).
- Allegations regarding the May 4, 2023 substitution of counsel and institutional file transfer without production history (SAC ¶¶ 34–39).
- The specific April 16, 2025 “provided by Dolan” admission on the trial record (SAC ¶¶ 58–63).
- Agency liability allegations asserting CSAA Insurance Exchange directed, funded, and ratified the litigation conduct (SAC ¶¶ 48–57, 138–143, 141A).
- A Seventh Cause of Action for constructive fraud under Civ. Code § 1573, pleaded in the alternative to Counts 2 and 3, using the same April 16, 2025 admission and the February 28, 2025 officer-of-the-court reliance ruling as discovery anchors (SAC ¶¶ 157–165; Hr’g Tr. Feb. 28, 2025, pp. 291–294; RT 7, p. 213, ll. 13–15).
- Express reliance on Evidence Code section 623 (estoppel by silence) and Evidence Code section 1414(b) (authentication by acquiescence) (SAC ¶¶ 104–105). The proposed SAC deletes allegations that might be construed as challenging intrinsic trial advocacy or seeking appellate review of the underlying verdict.

4. **Why the amendments are necessary and proper:** The amendments are necessary to conform the pleading to the precise evidentiary timeline and admissions made on the record in the underlying case. They are proper because they streamline the legal theories, clarifying that this is an independent equitable action targeting extrinsic fraud (conduct operating outside the trial), thereby allowing the Court to adjudicate the actual controversy under the correct standard.

5. **When facts giving rise to the amendments were discovered:** The primary facts giving rise to these claims were discovered between January 17, 2025 (when Motions in Limine Nos. 6 and 17 were filed) and April 16, 2025 (when defense counsel admitted the trial evidence was “provided by Dolan”). The February 28, 2025 hearing transcript (officer-of-the-court and burden-shift rulings) became a central discovery event for the constructive-fraud theory when

I parsed the certified hearing record in early 2026 alongside the April 16 admission. The necessity of the specific agency allegations and estoppel framing became clear to me during post-filing legal research and parsing of the certified trial transcripts in early 2026.

6. **Why the request was not made earlier:** The original Complaint and First Amended Complaint were filed to preserve my rights. The comprehensive review of the underlying trial transcripts, coordination of the timeline of the institutional file transfer, and proper integration of the Kougasian extrinsic-fraud framework required substantial time and diligence, culminating in the drafting of this refined Second Amended Complaint.
7. Attached hereto as **Exhibit 1** is a true and correct copy of the proposed Second Amended Complaint.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on _____, 2026, at Rohnert Park, California.

FRANCISCUS DYLAN ROSARIO

Dated: April 19, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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DEFENDANTS

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**REQUEST FOR JUDICIAL NOTICE IN
SUPPORT OF MOTION FOR LEAVE**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

MEMORANDUM IN SUPPORT OF REQUEST

Evidence Code section 452(d) permits the Court to take judicial notice of the “[r]ecords of (1) any court of this state.” Section 453 mandates judicial notice if a party requests it and gives each

adverse party sufficient notice to prepare to meet the request, and furnishes the court with sufficient information to enable it to take judicial notice.

The attached documents are official court records from the underlying action, Rosario v. Abdelhalim, Case No. CGC-21-594102. Plaintiff requests judicial notice solely to establish the procedural timeline, the dates on which critical representations were made to the tribunal, the February 28, 2025 officer-of-the-court reliance colloquy, and the date the substitution of counsel was filed, facts which are central to establishing good cause and timeliness for the proposed Second Amended Complaint under California Rules of Court, rule 3.1324. Plaintiff does not request judicial notice of the truth of the matters asserted in the underlying trial evidence, but only the fact of the filings, the certified transcript statements, and the institutional file transfer timeline.

True and correct copies of these documents are attached hereto as Exhibits A through E.

Dated: April 19, 2026



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Case No.: CGC-25-631801

**[PROPOSED] ORDER GRANTING
LEAVE TO FILE SECOND AMENDED
COMPLAINT**

Date:
Time:
Dept.:
Judge:
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The Motion for Leave to File the Second Amended Complaint by Plaintiff Franciscus Dylan Rosario came on regularly for hearing before this Court on May 12, 2026 at 9:00 a.m. in Department 301, the Honorable Garrett L. Wong presiding. Plaintiff Franciscus Dylan Rosario appeared

1 in pro per. Defendants appeared through counsel, [Counsel Names].

2 Having considered the moving papers, the concurrently filed Declaration, the Request for Judicial
3 Notice, all opposing and reply papers, and the arguments presented at the hearing, and good cause
4 appearing therefor, the Court finds that Plaintiff has established good cause under Code of Civil
5 Procedure sections 473(a)(1) and 576, and California Rules of Court, rule 3.1324, to amend the
6 pleadings.

7 **IT IS HEREBY ORDERED:**

- 8 1. Plaintiff's Motion for Leave to File the Second Amended Complaint is **GRANTED**.
9 2. The Second Amended Complaint (seven causes of action, including constructive fraud under
10 Civ. Code § 1573 and the refined Fourth Cause), attached as Exhibit 1 to the Declaration of
11 Franciscus Dylan Rosario filed in support of the motion, is deemed filed and served as of the
12 date of this Order.
13 3. Pursuant to Code of Civil Procedure section 471.5(a), Defendants shall file a responsive
14 pleading to the Second Amended Complaint within thirty (30) days of the date of this Or-
15 der.
16 4. This Order preserves all procedural rights of Defendants to challenge the Second Amended
17 Complaint on its own terms via demurrer, motion to strike, or otherwise.

18 _____
19 **IT IS SO ORDERED.**

20 Dated: _____
21 _____

22 HON. GARRETT L. WONG

23 Judge of the Superior Court

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I. PRELIMINARY STATEMENT AND NATURE OF THE ACTION

§I.A — Synopsis for the Court

This case is about a fraud on the integrity of the judicial process. At the heart of this action is a sequence of events where defense counsel, acting as officers of the court, procured a series of structural rulings against Plaintiff by representing that they had never received critical evidence—representations that the record now proves were false.

Record sequence relevant to this action 1. The Court’s articulated reliance on defense representations (Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7): > “I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven’t heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly.”

2. Related pretrial and trial rulings (January–April 2025): The certified record reflects the following rulings and orders (among others) occurring in the same general timeframe: * **MIL No. 1 denied** (Jan. 27, p. 41:3–11). * **911 CDs excluded** (Jan. 27, p. 38:22–25). * **911 transcripts** (Jan. 27, p. 39:18–24). * **Continuance denied** (Feb. 18, p. 181). * **Section 473 “surprise” request** (Feb. 18, p. 181:20–25). * **Burden allocation ruling** (Feb. 28, p. 293:1–3). * **Supplemental report** (RT 7, p. 156:24–28).

3. Subsequent representation on the record regarding provenance (RT 7, Apr. 16, 2025, p. 213, ll. 13–15): > “Sure. They were provided by Dolan. He has had them for whatever, sure.”

1. This is an independent action in equity to set aside a judgment procured by extrinsic fraud, coupled with fraud-based tort claims (including constructive fraud under Civ. Code § 1573), a statutory claim for attorney deceit, and principal liability theories pleaded in the alternative where overlapping conduct supports more than one count. This action does not seek appellate review of trial rulings. It seeks vacatur of a judgment obtained through a years-long pattern of silence, acquiescence, institutional file-transfer concealment, and court-facing misrepresentations that deprived Plaintiff of his right to a fair adversary hearing.

1 2. The core theory of this action rests on a two-phase “Lullaby” deception:

- 2 • **Phase One (Out-of-Court Lulling, Aug 2022 – May 2023):** Prior defense counsel
3 received the 911 audio (which contains both Abdelhalim’s admissions and the opera-
4 tor’s “you hit a pedestrian / yeah” exchange), body-worn camera footage, and CAD logs
5 during discovery in August–September 2022. Michael R. Chambers appeared for the de-
6 fense at plaintiff Franciscus Rosario’s **August 18, 2022** deposition; Jeremy Jessup later
7 testified under oath that those materials were produced to defense counsel and served in
8 discovery, **including in connection with Mr. Rosario’s deposition** (Hearing Tr. Feb. 18,
9 2025, pp. 139–140). At defendant Subhi Abdelhalim’s **September 30, 2022** deposition,
10 Chambers was again present; Abdelhalim gave sworn testimony about placing the 911
11 call. Marked deposition exhibits were images. No motion to compel, no meet-and-confer
12 letter, and no discovery challenge was ever raised regarding authenticity or provenance
13 during the 883 days between initial service and the January 17, 2025 motions in limine.
14 • **Phase Two (Court-Facing Reversal, Jan 2025 – Apr 2025):** After Plaintiff’s procedu-
15 ral windows to authenticate, subpoena foundation witnesses, or sequence evidence had
16 closed, successor counsel filed Motions in Limine 6 and 17 asserting the materials were
17 “not produced in discovery” and of “unknown provenance.” At the February 18, 2025
18 hearing, defense counsel stated the 911 call was “news to me.” The tribunal accepted
19 these representations without verification, denied Plaintiff’s continuance request, and is-
20 sued evidentiary rulings that excluded critical evidence and foreclosed Plaintiff’s ability
21 to fully present his case.

22 3. On April 16, 2025 (Trial Day 7), defense counsel Navaratnasingham stated on the certified
23 record: “Sure. They were provided by Dolan. He has had them for whatever, sure.” (RT
24 7, p. 213, ll. 13–15.) This admission—that the materials came from Plaintiff’s prior coun-
25 sel during discovery—is irreconcilable with her prior representations. It is the operational
26 linchpin of the fraud claim.

27 4. The injury-producing acts are: (a) Defendants’ years-long silence and acquiescence regard-
28 ing materials they received in discovery, addressed in sworn deposition course without timely

1 written authenticity challenge, and transmitted without objection; (b) the May 4, 2023 in-
2 stitutional file transfer from Chambers/Carbone Smith & Koyama to successor counsel PSA
3 without conveying the production history; (c) court-facing misrepresentations that induced
4 the tribunal to deny continuances, grant exclusionary motions in limine, and limit Plaintiff's
5 evidentiary presentation at a liability-only trial.

- 6 5. Plaintiff does not seek to relitigate the underlying negligence verdict. Plaintiff does not chal-
7 lenge the jury's weighing of evidence. Plaintiff challenges the **procurement** of the judgment
8 through extrinsic means—conduct that operated outside the trial itself to deny Plaintiff a fair
9 adversary hearing.

11 II. PARTIES, AGENCY, AND CAPACITIES

- 12 6. Plaintiff FRANCISCUS DYLAN ROSARIO is an individual residing in Rohnert Park, Sonoma
13 County, California. The underlying collision and litigation arose in San Francisco County,
14 which establishes proper venue under CCP § 395

- 15 7. Defendant CSAA INSURANCE EXCHANGE is a California interinsurance exchange with
16 its principal place of business at 3055 Oak Road, Mailstop W280, Walnut Creek, California
17 94597. CSAA was the liability insurer for defendant Subhi Abdelhalim in the underlying
18 action CGC-21-594102 and, as institutional principal, retained, funded, directed, and ratified
19 the conduct of defense counsel throughout that proceeding. CSAA is sued as institutional
20 principal under Civ. Code §§ 2307, 2310, and 2338, and under the Doctors' Company v.
21 Superior Court (1989) 49 Cal.3d 39 aiding-and-abetting framework for insurers acting outside
22 the normal insurer role.

- 23 8. Defendant CARBONE, SMITH & KOYAMA, LLP (hereinafter "CSK") is a California lim-
24 ited liability partnership with offices at 555 12th Street, Suite 1250, Oakland, California
25 94607-4095. CSK served as defense counsel in CGC-21-594102 from approximately Septem-
26 ber 2021 through May 4, 2023, and had custody of the defense file—including discovery
27 responses, deposition transcripts, and the 911/BWC/CAD materials—during that period.

- 28 9. Defendant MICHAEL R. CHAMBERS (State Bar No. 132394) is an individual attorney li-

censed to practice law in California and associated with CSK during the relevant period. Chambers personally handled the defense of CGC-21-594102 from August 2022 through the May 4, 2023 substitution and had personal knowledge of the materials received during discovery and depositions. Chambers is sued for his personal conduct in connection with the file transfer and for specific out-of-court representations to Plaintiff—not for trial advocacy.

10. Defendant PHILLIPS, SPALLAS & ANGSTADT, LLP (hereinafter “PSA”) is a California limited liability partnership with offices at 560 Mission Street, Suite 1010, San Francisco, California 94105. PSA substituted in as defense counsel on May 4, 2023, pursuant to the Substitution of Attorney (Transaction ID #69953800), and represented defendant Abdelhalim through trial.

11. Defendant PRIYA D. NAVARATNASINGHAM (State Bar No. 252686) is an individual attorney licensed to practice law in California and associated with PSA. Navaratnasingham signed and filed Motions in Limine Nos. 1–19 on January 17, 2025; made the “news to me” representations at the February 18, 2025 hearing; and made the “provided by Dolan” admission on April 16, 2025. Navaratnasingham is sued in her individual capacity for conduct constituting attorney deceit under Bus. & Prof. Code § 6128(a).

12. Defendant ALBERTO REYNA (State Bar No. 347323) is an individual attorney licensed to practice law in California and associated with PSA. Reyna issued a Complex subpoena (Order No. CA1147102-021) to SFPD on February 1, 2024, seeking the identical 911/BWC/CAD materials that were later portrayed as “unknown” or “not received,” and made representations at trial on April 16, 2025 that the supplemental police report was “not anything that we received as part of the subpoena.” Reyna is sued in his individual capacity for conduct constituting attorney deceit under Bus. & Prof. Code § 6128(a).

13. Defendants DOES 1–20 are persons or entities whose true names and capacities are unknown to Plaintiff. Plaintiff will amend this complaint to state the true names and capacities when ascertained.

14. **Capacity Disclaimer:** No defendant is sued for representations made to the tribunal at trial. The conduct on which this action rests is pre-adjudicative and extrinsic to the trial record.

1 **Service addresses for individual attorneys:** Defendants Chambers, Navaratnasingham, and
2 Reyna are sued in their individual capacities at the **principal places of business** stated in Para-
3 graphs 8–10 (Chambers/CSK: 555 12th Street, Oakland; PSA counsel: 560 Mission Street,
4 San Francisco), consistent with service at a party’s usual place of business under Code of
5 Civil Procedure § 415.10 does not currently possess **personal residence** addresses for these
6 individuals; venue remains proper in San Francisco County, and Plaintiff will amend with
7 residence addresses if required after reasonable inquiry.

8 9 **III. JURISDICTION AND VENUE (EQUITY, NOT APPEAL)**

- 10 15. This Court has original equity jurisdiction over this independent action to set aside a judg-
11 ment procured by extrinsic fraud. Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028,
12 1034–1036; Olivera v. Grace (1942) 19 Cal.2d 570, 575–576. On demurrer, the Court must
13 accept as true all well-pleaded factual allegations and resolve all reasonable inferences in
14 Plaintiff’s favor. ABF Capital Corp. v. Berglass (2005) 130 Cal.App.4th 825, 833; Blank v.
15 Kirwan (1985) 39 Cal.3d 311, 318; Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967;
16 Committee on Children’s Television v. General Foods Corp. (1983) 35 Cal.3d 197, 213 (no
17 “speaking demurrer”).
- 18 16. This is not an appeal. CCP § 904.1 a routing statute for appeals; it does not confer merits
19 immunity on fraud in the procurement of a judgment. The trial court possesses inherent
20 equity jurisdiction to entertain an independent action regardless of any pending or completed
21 appellate proceedings.
- 22 17. CCP § 473(b) is inapplicable because this is an independent equitable action, not a motion
23 for relief in the underlying case. The six-month limitation in § 473(b) does not govern inde-
24 pendent equity actions, which accrue on discovery of the fraud. Kougasian, 118 Cal.App.4th
25 at 1034.
- 26 18. Venue is proper in San Francisco County because the underlying action arose here and one or
27 more Defendants maintain offices or transact business here.

1 **§III.D — CCP § 425.17 statutory exemptions from anti-SLAPP (threshold)**

2 **18A. Commercial services — § 425.17(c) (primary).** Section 425.16 does not apply to any
3 cause of action brought against a person **primarily engaged in the business of selling or leas-**
4 **ing goods or services, including, but not limited to, insurance,** arising from any statement or
5 conduct by that person if both of the following conditions exist:

- 6 • **(c)(1)** The statement or conduct consists of **representations of fact** about that person's **busi-**
7 **ness operations, goods, or services,** made for the purpose of obtaining approval for, promot-
8 ing, or securing **commercial transactions** in the person's goods or services, **or** the statement
9 or conduct was made **in the course of delivering** the person's goods or services. Defendant
10 **CSAA** is engaged in the business of **insurance**. Defendants **CSK** and **PSA** are engaged in the
11 business of **delivering legal services** in connection with the defense of the insured. Alleged
12 misrepresentations and omissions concerning **what was received in discovery, file custody,**
13 **production history on substitution, and claims/litigation posture** concern **representations**
14 **of fact about business operations and services** in the course of delivering insurance-backed
15 legal defense—not abstract petitioning for public discourse.
- 16 • **(c)(2)** The **intended audience** includes the **tribunal and opposing party** in litigation in
17 which those services are delivered, and the statements arose **out of or within the context**
18 **of** adversary litigation and regulatory-grade proof obligations, within the statute's audience
19 requirements. Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12, 30–32 (commercial-
20 speech exemption; statutory text and legislative purpose). Plaintiff preserves for briefing any
21 **§ 425.17(d)(2)** limitation as applied to **artistic** or **newsgathering** defendants; this action does
22 not target such a paradigm.

23 **18B. Public interest — § 425.17(b) (in the alternative).** Section 425.16 does not apply to any
24 action **brought solely in the public interest or on behalf of the general public** if **all** of the
25 following conditions exist: **(b)(1)** The plaintiff does not seek any relief greater than or different
26 from the relief sought for the general public or a class of which the plaintiff is a member (a claim
27 for attorney's fees, costs, or penalties does not constitute greater or different relief for purposes
28 of this subdivision). **(b)(2)** The action, if successful, would enforce an **important right affecting**

1 **the public interest**, and would confer a **significant benefit**, whether pecuniary or nonpecuniary,
2 on the general public or a large class of persons. **(b)(3) Private enforcement is necessary** and
3 places a **disproportionate financial burden** on the plaintiff in relation to the plaintiff's stake in
4 the matter. Plaintiff alleges this subdivision **in the alternative** as to **facets of relief** that align
5 with **class-wide enforcement of tribunal integrity** (including **declaratory** relief), and joins issue
6 whether individual vacatur and fraud remedies share the same public-interest nucleus for purposes
7 of § 425.17(b). Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309,
8 318–322 (exemptions resolved as a threshold).

9 **18C. Effect of exemption — § 425.17(e).** If the Court denies a special motion to strike **on the**
10 **ground that a cause of action is exempt** under § 425.17, **the appeal provisions in subdivision**
11 **(i) of § 425.16 and paragraph (13) of subdivision (a) of § 904.1 do not apply** to that cause
12 of action—i.e., **no interlocutory anti-SLAPP appeal or automatic stay** for an exemption-based
13 denial. Code Civ. Proc. § 425.17, subd. (e).

14 **18D.** If the Court finds § 425.17 satisfied for a given cause of action, **CCP § 425.16 does not**
15 **apply** to that cause of action; the Court need not reach City of Cotati v. Cashman (2002) 29 Cal.4th
16 69 prong one or prong two as to that cause of action.

18 **IV. FACTUAL ALLEGATIONS**

19 **IV.A — The Underlying Action and What It Adjudicated**

20 19. On or about February 4, 2021, Plaintiff was injured in a motor vehicle collision in San Fran-
21 cisco involving defendant Subhi Abdelhalim.

22 20. Plaintiff filed a personal injury action styled Rosario v. Abdelhalim, Case No. CGC-21-
23 594102, in the Superior Court of California, County of San Francisco.

24 21. Trial was held before the Garrett L. Wong in Department 504 in April 2025. On April 25,
25 2025, the jury returned a 9–3 defense verdict on liability. Judgment was entered on April
26 25, 2025, and Notice of Entry of Judgment was filed April 29, 2025. Because liability was
27 resolved against Plaintiff, no damages judgment was entered in Plaintiff's favor. The defense
28 thereafter pursued costs, including by filing a Memorandum of Costs and Disbursements

on or about April 30, 2025 asserting **\$76,308.90** in total costs, and obtaining an order on memorandum of costs on August 8, 2025, in CGC-21-594102. On information and belief, any **writ of execution, abstract of judgment, wage garnishment, bank levy, or similar enforcement** filing would appear on the **register of actions** for CGC-21-594102; Plaintiff has not identified such a filing in the materials reviewed to date while preparing this complaint and will amend if ascertained.

22. The underlying negligence trial adjudicated whether defendant Abdelhalim was negligent in the operation of his vehicle and whether that negligence proximately caused injury to Plaintiff. The trial was a liability-only proceeding.

IV.B — Issues Not Adjudicated in the Underlying Trial

23. The following issues—which form the gravamen of this complaint—were **never presented to, litigated before, or necessarily decided by** the trier of fact in the underlying action:

- (a) Whether the production history of the 911 audio, body-worn camera footage, and CAD records was concealed from successor counsel during the May 4, 2023 file transfer;
- (b) Whether prior defense counsel’s out-of-court positions regarding authenticity of these materials were consistent with their internal records;
- (c) Whether CSAA directed or ratified the file-transfer concealment and the subsequent court-facing misrepresentations;
- (d) Whether the out-of-court positions taken by prior defense counsel contradicted the later tribunal-facing positions taken by successor counsel; and
- (e) Whether Plaintiff was deprived of a fair adversary hearing by extrinsic fraud operating outside the trial itself.

24. Under Crowley v. Katleman (1994) 8 Cal.4th 666 and Lucido v. Superior Court (1990) 51 Cal.3d 335, collateral estoppel requires that the identical issue was “necessarily decided” in the prior action. None of the five issues enumerated above was presented to, or necessarily decided by, the jury. The controlling formulation is that “the primary right is simply the plaintiff’s right to be free from the particular injury suffered.” Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 904; Boeken v. Philip Morris USA, Inc. (2010) 48 Cal.4th 788,

798 (“same primary right”). The primary right vindicated in this action—the right to a fair adversary hearing free of extrinsic fraud—is not the same primary right as in the underlying negligence action.

Primary Right / Duty / Injury (Underlying Trial)	Primary Right / Duty / Injury (This Action)
Right: Freedom from negligent bodily harm from the collision. Duty: Ordinary care in operating a motor vehicle. Injury: Physical and economic harm from the collision.	Right: Freedom from a judgment procured by extrinsic fraud; right to a fair adversary hearing. Duty: Candor to the tribunal; conveyance of production history on substitution; institutional duties of principal and counsel. Injury: Deprivation of a fair adversary hearing and attendant procedural harm that did not exist and could not have been litigated in the liability-only trial.

Under Mycogen and Boeken, there is no “same primary right” match; res judicata and collateral estoppel therefore do not facially bar this complaint.

IV.C — Evidence at Issue and Production History

25. The following evidentiary items are central to this action:

- (a) **911 Audio Recording:** The emergency call placed by defendant Abdelhalim immediately after the collision. The recorded content includes three critical categories: (i) Abdelhalim’s admissions (“I barely hit him with anything”; “I’m calling the 911 for him”); (ii) the operator’s direct question (“you hit a pedestrian?”) and Abdelhalim’s affirmative response (“yeah”) (RT 8, p. 112, ll. 16–22; p. 113, ll. 11–17); and (iii) Plaintiff Rosario’s own voice identifying Abdelhalim’s vehicle as the striking vehicle (“He hit me with his van.”) (RT 8, p. 34, ll. 17–25).
- (b) **Body-Worn Camera Footage:** Approximately five (5) videos recorded by SFPD officers responding to the collision scene. The footage includes two substantive content categories:

(i) an independent eyewitness statement (Justin Rosemond) telling the responding officer that Abdelhalim's van/truck struck the pedestrian; and (ii) Plaintiff's own recorded statement at the scene identifying the van/truck as the striking vehicle.

(c) **CAD Logs:** Computer-Aided Dispatch records documenting dispatch times and call details.

(d) **SFPD Report 210079556:** The supplemental police report relating to the collision.

26. These materials were served on prior defense counsel (Chambers/CSK) by Plaintiff's counsel (Dolan Law Firm) during discovery in August–September 2022. Specifically, the 911 audio was served on or about August 18, 2022. On information and belief, the 911 audio, body-worn camera footage, and CAD logs have been in Plaintiff's counsel's possession since 2021, with transmission from SFPD traced to that period. (Hearing Tr. Feb. 18, 2025, p. 139, l. 11: "We had 911 emergency services send those to you and Dolan had a copy since 2021.") At the same hearing, Jeremy Jessup testified that **the department sent links directly** to defense counsel (Hearing Tr. Feb. 18, 2025, p. 145, ll. 4–18), refuting any inference that receipt was too intermediated or ambiguous to support authentication by acquiescence. **Proof of service and production index:** A standalone **proof of service** dated August 18, 2022, for the 911/BWC/CAD production may be established by **judicial notice** of the filed register of actions and discovery in CGC-21-594102 and by **certified pretrial hearing testimony** (Jeremy Jessup, Hearing Tr. Feb. 18, 2025, pp. 139–140). The **September 30, 2022 Abdelhalim deposition** transcript additionally bears on **Chambers' appearances** and **911-related examination** (it is not offered as a substitute for a filed POS). Plaintiff will **supplement** this pleading with a filed POS or document-production index from the underlying court file or prior counsel's file when obtained.

27. On September 30, 2022, defendant Abdelhalim was deposed. Defense counsel (Chambers) attended. Abdelhalim gave sworn testimony regarding placing the 911 call and related questioning; marked deposition exhibits were images.

28. On September 9, 2024, Plaintiff served CAD identifiers on successor counsel (Reyna/PSA). No objection was raised.

IV.D.0 — The Nine-Point Evidentiary Chain of Defense Receipt

The denials of receipt were not merely mistaken; they were irreconcilable with a two-year record of notice and possession:

#	Date	Proof Artifact	Pin cite / Source	Who Had Notice
1	Aug. 18, 2022	Service of 911 audio by Dolan to defense counsel	Jessup testimony, Hr’g Tr. Feb. 18, 2025, pp. 139–140	Chambers / CSK
2	Aug. 18, 2022	Rosario deposition — Chambers present	Rosario depo tr.	Chambers
3	Sept. 30, 2022	Abdelhalim deposition — Chambers present; 911-related sworn testimony	Abdelhalim depo tr.	Chambers
4	May 4, 2023	Substitution of Attorney (Transaction ID #69953800) — file transferred from CSK → PSA	CT record	CSK → PSA

#	Date	Proof Artifact	Pin cite / Source	Who Had Notice
5	Feb. 1, 2024	Reyna (PSA) Complex subpoena to SFPD for identical materials	Order No. CA1147102- 021	PSA
6	Feb. 26, 2024	SFPD produced records responsive to subpoena	SFPD Report 210079556	PSA
7	Sept. 9, 2024	Plaintiff's FROG/SROG served on Reyna identifying CAD log	FROG p. 28, ll. 23–25; SROG p. 9, ll. 9–11	PSA
8	Feb. 18, 2025	Jessup testifies “Dolan had a copy since 2021”	Hr’g Tr. Feb. 18, 2025, p. 139, l. 11	Navaratnasingham (present)
9	Apr. 16, 2025	Navaratnasingham admission: “They were provided by Dolan”	RT 7, p. 213, ll. 13–15	PSA (admitting)

IV.D — Phase One: Out-of-Court Lulling (Aug 2022 – May 2023)

29. During the period from August 2022 through the May 4, 2023 substitution of counsel, Defendants failed to raise any objection, challenge, or concern regarding the authenticity, prove-

nance, or receipt of the 911 audio, body-worn camera footage, or CAD logs.

30. No motion to compel under CCP § 2031.310 was ever filed by any defense party regarding these materials.

31. No meet-and-confer letter or formal discovery objection was ever served challenging the authenticity or foundation for these materials.

32. Defense counsel's silence during this 883-day period (from August 18, 2022 to January 17, 2025) induced Plaintiff to believe that authentication and provenance of these materials were either uncontested or already resolved. Measured to the first oral denial at the January 27, 2025 hearing—"we never received these CDs, certainly" (Hr'g Tr. Jan. 27, 2025, p. 34, ll. 1–10)—the silence window is **893 days**: 893 days of silence, followed by categorical denial on Day 894.

IV.D.1 — Plaintiff's Contemporaneous Diligence and Reliance 32A. Plaintiff exercised diligence throughout the pretrial period and preserved his objections to Defendants' conduct contemporaneously:

- (a) **September 9, 2024 Discovery Service:** Plaintiff served Further Responses to Form Interrogatories (FROG) and Supplemental Responses to Special Interrogatories (SROG) on successor counsel (Reyna/PSA), explicitly identifying the SFPD CAD log and related materials. (FROG, p. 28, ll. 23–25; SROG, p. 9, ll. 9–11.) No objection or dispute was raised in response.
- (b) **December 2024 Meet-and-Confer:** Plaintiff reached out to defense counsel regarding the 911/BWC materials in December 2024. Defense declined to acknowledge any issue with provenance or authenticity.
- (c) **January 27, 2025 Preservation:** Plaintiff appeared in Department 301 and contemporaneously preserved his objection on the record: "We have two 911 records that the Defense has been trying to suppress." (Hr'g Tr. Jan. 27, 2025, p. 19, ll. 1–5.) Plaintiff confirmed on the record that he had served the FROG/SROG references to the CAD identifiers. (Hr'g Tr. Jan. 27, 2025, p. 32, ll. 1–16.)

1 (d) **February 18, 2025 Preservation:** Plaintiff preserved the concealment theme: “the informa-
2 tion was completely concealed from me. I never received any access to any of the videos or
3 911 tapes before the moment they had sent me a motion in limine.” (Hr’g Tr. Feb. 18, 2025,
4 p. 17.) Plaintiff stated: “I am going to continue to state it, that I’m absolutely prejudiced.
5 This is going on the record.” (Hr’g Tr. Feb. 18, 2025, pp. 44–45.) Plaintiff characterized
6 the defense posture: “this denial and this delay is very convenient, and you will see it as we
7 continue to litigate this case.” (Hr’g Tr. Feb. 18, 2025, p. 166, ll. 1–9.)

8 (e) **January 27, 2025 “Weaponization” Objection:** Plaintiff articulated the tactical use of pro-
9 cedure in real time: “They’re using weaponization of procedure.” (Hr’g Tr. Jan. 27, 2025,
10 p. 42, ll. 1–8.) This contemporaneous objection puts the scienter and tactical-exploitation
11 theory on the record at the earliest procedural opportunity.

12 **32B.** Plaintiff’s contemporaneous diligence establishes: (i) accrual under CCP § 338(d) runs
13 from the **January 17, 2025** MIL filings (the “contrary court-facing position”), not from 2021
14 possession; and (ii) reasonable reliance for element 3 of estoppel by silence under City of Long
15 Beach v. Mansell (1970) 3 Cal.3d 462, 493.

16 33. Plaintiff is not aware of any meet-and-confer letter, email thread, or written defense com-
17 munication during August 2022 through May 2023 in which Chambers or CSK affirmatively
18 disputed the authenticity, foundation, or provenance of the 911 audio, body-worn camera
19 footage, or CAD logs after production, after the August 18, 2022 Rosario deposition, or after
20 the September 30, 2022 Abdelhalim deposition. The operative Phase One fact for estoppel
21 is **defense silence and non-objection** in the face of **receipt in discovery, sworn deposition**
22 **course (Rosario and Abdelhalim), and lack of written authenticity challenge**, established
23 by the record (Jessup testimony; deposition transcripts; absence of any motion to compel or
24 discovery objection in the 883-day window). If any such correspondence exists, Plaintiff will
25 amend after it is identified through discovery or declaration. **Incorporation (same case):**
26 Plaintiff incorporates by reference, as though fully set forth, the **Pre-Trial Meet-and-Confer**
27 **(Lulling and Concealment)** and related **exhibit-list / authentication** chronology from Plain-
28 tiff’s operative **First Amended Complaint** previously filed in this action, Case No. CGC-25-

631801—including allegations that during **out-of-court meet-and-confer discussions regarding the exhibit list**, the defense engaged in communications that lulled Plaintiff into believing **authentication of the 911 audio and CAD records was uncontested or resolved**, while the need for specific **SFPD records-custodian** or **CAD index** subpoena targets was obscured. **Underlying-case M&C paper trail (form):** The CT for Case No. CGC-21-594102 reflects defense **meet-and-confer** correspondence attached to motion practice (e.g., **CT Vol. 1, p. 66**, referencing a defense meet-and-confer letter and follow-up email attached to successor counsel’s declaration). That entry confirms **written** meet-and-confer materials exist in the **underlying court file**; whether any such writing **affirmatively disputed authenticity** of the 911/BWC/CAD for August 2022–May 2023 is a factual issue Plaintiff will prove through **underlying-file exhibits, deposition and hearing transcripts, and declarations** from persons with personal knowledge.

IV.E — The May 4, 2023 Substitution and Institutional File Transfer

34. On May 4, 2023, the Substitution of Attorney (Transaction ID #69953800) was filed, substituting PSA for Chambers/CSK as defense counsel.
35. On information and belief, the defense file—including pleadings, discovery responses, deposition transcripts, and evidence—was transferred from Chambers/CSK to PSA on or about May 4, 2023.
36. Chambers and CSK, as prior custodians of the defense file, had a duty to convey to successor counsel the complete production history of all discovery materials, including the dates materials were received, the sources from which they were received, and any deposition testimony in which those materials were used.
37. On information and belief, Chambers and CSK transferred the defense file to PSA **without** conveying the production history for the 911 audio, body-worn camera footage, and CAD logs—specifically, without conveying that these materials had been (a) produced by Plaintiff’s counsel in August–September 2022, (b) addressed in sworn testimony at the September 30, 2022 Abdelhalim deposition with Chambers present (911-related examination), and (c) later authenticated by Abdelhalim at trial on the merits record (April 17, 2025).

38. Chambers knew or should have known that without the production history, successor counsel would be unable to accurately represent provenance to the tribunal. This constitutes conscious-disregard scienter under Hobart v. Hobart Estate Co. (1945) 26 Cal.2d 412.

39. Under the foreseeability factors set forth in Biakanja v. Irving (1958) 49 Cal.2d 647, Chambers and CSK owed a duty of reasonable care in undertaking the file transfer—a duty that extended to successor counsel, to the tribunal, and to the opposing party.

IV.F — Phase Two: Court-Facing Shift (Jan–Apr 2025)

40. On January 17, 2025, successor counsel (Navaratnasingham/PSA) filed Motions in Limine Nos. 1–19, including:

(a) **MIL No. 6** (CT Vol. 1, pp. 149–151): Seeking to exclude evidence that was “not produced in discovery.”

(a)(i) **Plaintiff’s Contemporaneous Objection (Jan. 27, 2025)**: Plaintiff contemporaneously objected to MIL 17 on January 27, 2025 and used the word “suppress” on the record: “We have two 911 records that the Defense has been trying to suppress.” (Hr’g Tr. Jan. 27, 2025, p. 19, ll. 1–5.)

(b) **MIL No. 17** (CT Vol. 1, p. 238): Asserting that “Defendant has no idea where this 911 call log or audio recording came from.”

(b)(i) **Plaintiff’s Contemporaneous Preservation (Feb. 18, 2025)**: Plaintiff preserved the concealment theme in the same colloquy: “the information was completely concealed from me. I never received any access to any of the videos or 911 tapes before the moment they had sent me a motion in limine.” (Hr’g Tr. Feb. 18, 2025, p. 17.)

At the January 27, 2025 hearing, defense counsel framed these motions to the Court. (Hearing Tr. Jan. 27, 2025, p. 7, ll. 10–14.)

(c) On January 28, 2025, one day after filing MIL Nos. 6 and 17, defense moved to dismiss the underlying action under CCP § 581(d) for nonappearance. This **second-day dismissal attempt** was filed while Plaintiff was in the **Santa Clara Valley Medical Center ER**, and the Court remarked that dismissal would “suffer immediate reversal.” (Hearing Tr. Jan. 28, 2025, p. 90, ll. 17–33.)

(c)(i) **Contextual Note**: The timing of the CCP § 581(d) motion—filed the day after the MIL

1 strategy was deployed, while Plaintiff was medically incapacitated—demonstrates the defense’s
2 intent to terminate Plaintiff’s case while the authenticity/provenance attack was underway and
3 before Plaintiff could respond.

4 (d) **February 3, 2025 Renewed Dismissal:** On February 3, 2025, defense renewed its CCP
5 § 581(d) dismissal motion, this time under submission and conditioned on an ex parte dis-
6 closure order. The Court took the motion under submission pending compliance with the
7 disclosure condition. (Hr’g Tr. Feb. 3, 2025, p. 109, ll. 21–23; p. 116, ll. 9–16; pp. 122–124.)
8 This hearing is notable because defense maintained termination leverage across **two hearings**
9 during the window Plaintiff was preserving his suppression objection on the record.

10 41. These representations were made 883 days after the 911 audio was served on defense counsel
11 and 620 days after the file was transferred to successor counsel. Defense counsel denied the
12 883-day silence premise at the January 27, 2025 hearing. (Hearing Tr. Jan. 27, 2025, p. 15,
13 ll. 10–16.)

14 42. On February 18, 2025, at a pretrial hearing, Jeremy Jessup (Dolan Law Firm) testified under
15 oath that the 911 audio, body-worn camera footage, and CAD logs were “produced to de-
16 fense counsel” and “served on them in the production for discovery as well at Mr. Rosario’s
17 deposition” in August–September 2022. (Hearing Tr. Feb. 18, 2025, pp. 139–140.)

18 43. In direct response to Jessup’s testimony, Navaratnasingham stated: “our office did not receive
19 the 911 call until the day of the MSC... There was no sort of ability to verify whether that
20 was accurate or not... this is news to me.” (Hearing Tr. Feb. 18, 2025, p. 141, ll. 4–11.) The
21 Court responded: “I see. Okay.”

22 44. The Court accepted Navaratnasingham’s representation without verification and denied Plain-
23 tiff’s request for a continuance.

24 **44A. The Tribunal’s Articulated Reliance on Officer-of-Court Status.** The tribunal’s reliance
25 on Phillips, Spallas & Angstadt’s officer-of-the-court status was expressly articulated on February
26 28, 2025, when the Court stated: “I’m not going to question a lawyer’s remarks regarding what
27 they have and don’t have.” (Hr’g Tr. Feb. 28, 2025, p. 291, ll. 26–28.) The Court continued:
28 “They are an officer of the Court, and they are supposed to conduct themselves appropriately

1 before the Court. If they are not, there are other sanctions that they could suffer here. So far I
2 haven't heard or seen anything on the part of the current law firm which tells me that they have
3 conducted themselves improperly.” (Hr’g Tr. Feb. 28, 2025, p. 292, ll. 1–7 (Wong, J.)) This
4 statement memorializes the tribunal’s institutional reliance on defense candor — reliance that was,
5 unknown to the Court, already false by virtue of the MIL No. 6 and MIL No. 17 representations.
6 The Court’s articulated reliance is further reinforced by the February 18, 2025 hearing statement:
7 “given their representations that they’re going to provide that material.” (Hr’g Tr. Feb. 18, 2025,
8 p. 145, ll. 16–19.) **Guardrail (Risk #1):** This articulated reliance at the time of the ruling must be
9 juxtaposed with the April 16, 2025 admission — “They were provided by Dolan. He has had them
10 for whatever, sure.” (RT 7, p. 213, ll. 13–15) — which demonstrates the reliance was misplaced.

11 **45. Bait-and-Switch Causation:** Defendants executed a two-phase deception: (Phase One) out-
12 of-court silence and acquiescence during pre-trial discovery that caused Plaintiff to believe
13 authentication and provenance of the 911 audio, body-worn camera footage, and CAD logs
14 were either uncontested or already resolved; and (Phase Two) a reversal, after Plaintiff’s
15 procedural windows to subpoena, authenticate, or sequence the evidence had closed, to af-
16 firmative court-facing representations that the materials were of unknown provenance or not
17 previously received. The Phase One conduct kept Plaintiff in ignorance; the Phase Two repre-
18 sentations then induced the Court to deny continuances and defer admission at a compressed
19 trial posture, depriving Plaintiff of a usable, timely presentation at a liability-only trial. Defen-
20 dants affirmatively **blocked the curative path** available to Plaintiff by opposing continuance
21 of the trial date while the authenticity/provenance attack was underway (Hearing Tr. Jan. 27,
22 2025, p. 55, ll. 8–19; p. 57, ll. 10–14: “we object to any continuance of the trial date. We’re
23 prepared to move forward.”). The bait-and-switch culminated in defense closing argument
24 at RT 10, pp. 49–52, telling the jury Plaintiff “changed his story to avoid a Vehicle Code
25 violation,” as **judicial-estoppel and scienter evidence** of how defense later **weaponized** the
26 evidentiary confusion that Phases One and Two had engineered. This closing argument is the
27 payoff transaction linking Phase Two conduct to the 9–3 liability verdict. (See also Paragraph
28 118(b).)

IV.G — Tribunal Reliance and Closed Procedural Windows

46. The Court made the following rulings in reliance on defense counsel’s representations:

- (a) **Ruling 1:** Denial of continuance (Hearing Tr. Feb. 18, 2025, p. 181).
- (b) **Ruling 2:** At the January 27, 2025 hearing, the Court denied Plaintiff’s Motion in Limine No. 1 to admit the 911 materials: “plaintiff’s motion in limine to admit materials regarding the 911 call, including CDs, are denied subject to ability to lay a foundation for that material.” (Hr’g Tr. Jan. 27, 2025, p. 41, ll. 3–11.) The exclusion was grounded on defense counsel’s affirmative “lacks foundation, not authenticated, never produced” representation moments earlier (id. p. 15, ll. 10–16).
- (b-1) **Ruling 2A:** The certified 911 CD physically presented to the Court was excluded on the same basis: “evidence is excluded, unless and until you can lay a foundation for its admissibility. . . . in particular applies to the compact disc. . . .” (Hr’g Tr. Jan. 27, 2025, p. 38, ll. 22–25.)
- (c) **Ruling 3:** Exclusion of supplemental police report (RT 7, p. 156, ll. 24–28) after defense counsel stated it was “not anything that we received as part of the subpoena.”
- (d) **Ruling 4:** Deferral of 911 call admission (RT 7, pp. 163–164) after defense counsel stated he was “not sure what recording” Plaintiff was referring to.
- (e) **Ruling 5:** Denial of reporter read-back at the Abdelhalim impeachment moment (RT 8, p. 144, ll. 3–12: “No. We are not going to do that.”).
- (f) **Ruling 6:** At the January 27, 2025 hearing, the Court categorically excluded the 911 transcripts — the written textual form of Abdelhalim’s operator admissions — in perpetuity: “the so-called transcripts . . . that will never be admitted as evidence.” (Hr’g Tr. Jan. 27, 2025, p. 39, ll. 18–24.) This categorical exclusion foreclosed Plaintiff’s ability to publish the operator’s question (“you hit a pedestrian?”) and Abdelhalim’s “yeah” response to the jury in textual form; only the fast-forwarded audio was heard three months later after authentication by the party opponent.

47. Each ruling deprived Plaintiff of the ability to present critical evidence at trial. Specifically:

- (a) Plaintiff was unable to move for a continuance to subpoena SFPD foundation witnesses, notwithstanding Plaintiff’s curative continuance requests at the February 18, 2025 hearing

- (Hearing Tr. Feb. 18, 2025, p. 147, ll. 5–10; p. 151, ll. 1–25; p. 164, ll. 14–20);
- (b) Plaintiff was unable to authenticate the 911 audio through its chain-of-custody custodian;
- (c) Plaintiff was unable to introduce the supplemental police report corroborating his account;
- (d) Plaintiff was forced to testify before the 911 audio was admitted, disrupting his intended evidentiary sequence;
- (e) As **reliance injury** from Ruling 5, Plaintiff was deprived of a reporter read-back of Abdelhalim’s impeachment confirmation (“Correct,” RT 8, p. 146, ll. 12–18), preventing the jury from hearing the impeachment re-read when defense later argued in closing that Plaintiff “changed his story” (RT 10, pp. 49–52);
- (f) Plaintiff was unable to obtain timely doctor-file production before the liability trial because of defense’s protective-order posture. (Hearing Tr. Feb. 28, 2025, pp. 291–294.)
- (g) **The February 28, 2025 burden-shift ruling** — “it’s required of you to send the documents over. Otherwise, I won’t allow them in.” (Hr’g Tr. Feb. 28, 2025, p. 293, ll. 1–3) — imposed on Plaintiff an affirmative re-production burden for materials already in defense’s possession by virtue of the Dolan transmission, as Phase Two conduct rendered defense possession a judicially-recognized unknown.

IV.G-1 — The Four-Hearing Institutional-Reliance Chain

47A. The record reveals a four-hearing pattern of tribunal reliance on institutional representations in lieu of independent verification:

	Court’s articulated Hearing reliance	Defense’s underlying misrepresentation	Exclusion/ruling produced
Jan 27, 2025	Implied reliance on “not produced / lacks foundation”	p. 15:10–16; p. 19:7–13; p. 34:1–10	MIL exclusion of 911 CDs + transcripts (p. 38:22–25; p. 39:18–24; p. 41:3–11)

Hearing	Court’s articulated reliance	Defense’s underlying misrepresentation	Exclusion/ruling produced
Feb 18, 2025	“I see. Okay.” (p. 141:15); “given their representations” (p. 145:16–19)	“news to me” (p. 141:3–14)	Continuance denied (p. 181–182); § 473 surprise rejected (p. 181:20–25)
Feb 28, 2025	“I’m not going to question a lawyer’s remarks” (p. 291:26–28); “They are an officer of the Court” (p. 292:1–7)	Continued “we never got that” pattern (p. 290:15–p. 291:7)	Burden-shift: “otherwise, I won’t allow them in” (p. 293:1–3)
Apr 16, 2025	Court’s inference from defense authentication posture	Stacked denials RT 7 pp. 156, 162, 207–208	Exclusion of supplemental police report (RT 7, p. 156:24–28); deferral of 911 admission

IV.H — CSAA Direction, Funding, Approval, and Ratification

48. CSAA, as the liability insurer for defendant Abdelhalim, retained, funded, and **operationally controlled** the defense of CGC-21-594102 from inception through trial—including litigation strategy and resource allocation through Chambers/CSK and successor PSA—within the three-prong agency framework pleaded herein: **(1)** funding and operational control of the defense; **(2)** approving and directing the **specific litigation positions** that became the court-facing misrepresentations as to receipt and provenance of the 911/BWC/CAD materials; and **(3)** ratifying the May 4, 2023 file transfer and the attendant failure to convey production history to successor counsel.

49. On or about February 25, 2021—just 21 days after the collision—CSAA issued a written de-

1 nial letter for claim number **1004-09-1054** under policy number **CAAS100310857** (insured:
2 Subhi Abdelhalim; date of loss: February 4, 2021), signed by **Sarah Rash**, identified therein
3 as CSAA's Claims Representative (telephone 856-209-7086), concluding CSAA's investiga-
4 tion and denying coverage. This precipitous denial, made before any meaningful investigation
5 could have been completed, reflects CSAA's institutional posture throughout the litigation.
6 (Exhibit F.)

7 50. CSAA approved the retention of Chambers/CSK as defense counsel, approved the May
8 4, 2023 substitution to PSA, and continued to fund and direct the defense strategy after
9 substitution—including positions conveyed to the tribunal through MIL practice and hear-
10 ing argument.

11 51. On information and belief, CSAA directed and approved the retention of defense counsel
12 and the May 4, 2023 substitution to successor counsel, and continued to fund the defense
13 strategy through trial. The specific terms of any panel-counsel arrangement, substitution-
14 approval correspondence, billing instructions, litigation-guideline letters, and claim-file notes
15 are within CSAA's exclusive control and will be sought in discovery. **Agent swap:** CSAA's
16 May 4, 2023 substitution of panel counsel from CSK to PSA did not sever the chain of
17 agency. The out-of-court lulling and the decision not to convey production history had already
18 occurred. A principal cannot launder extrinsic fraud by rotating agents mid-litigation; if
19 anything, the substitution is itself a vector by which the fraud was perpetuated. (Civ. Code
20 §§ 2307, 2310, 2338; Doctors' Company v. Superior Court (1989) 49 Cal.3d 39.)

21 52. CSAA ratified the conduct of its retained counsel by: (a) continuing to pay successor coun-
22 sel's fees after the file transfer; (b) continuing to direct or approve major strategic decisions,
23 including the motion-in-limine strategy; and (c) accepting the benefit of the resulting verdict.

24 53. Under Civ. Code § 2338, a principal is liable for the fraudulent representations of its agent
25 made within the scope of the agent's authority. Under Civ. Code §§ 2307 and 2310, a princi-
26 pal ratifies an agent's unauthorized acts by accepting the benefits of those acts with knowledge
27 of the material facts.

28 54. "CSAA acted in a capacity independent of its role as insurer—as institutional principal fund-

ing, directing, and ratifying specific deceptive litigation conduct.” Doctors’ Company v. Superior Court (1989) 49 Cal.3d 39 preserves aiding-and-abetting and conspiracy claims against insurers acting outside the normal insurer role.

54A. CSAA Institutional Absences: No CSAA representative — no claims representative, coverage counsel, or panel-coordination attorney — appeared at any of the four pre-trial hearings (January 27, 2025; January 28, 2025; February 18, 2025; February 28, 2025) at which defense counsel’s denials of receipt were made and challenged on the record. The certified hearing transcripts reflect only appearances by outside panel counsel for defense (Jessup, Navaratnasingham, and successor PSA attorneys). CSAA’s institutional absence from these hearings — during which the Court expressly articulated reliance on defense counsel’s officer-of-the-court candor (Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7) — did not interrupt or correct the misrepresentations. Under Civ. Code §§ 2307 and 2310, a principal’s silence in the face of an agent’s unauthorized or fraudulent conduct, when the principal had knowledge and opportunity to correct, constitutes ratification. CSAA’s claim file, panel-counsel correspondence, and litigation reports will establish whether CSAA received contemporaneous hearing summaries or transcript excerpts.

55. Moradi-Shalal v. Fireman’s Fund (1988) 46 Cal.3d 287, 305 preserved common-law fraud claims against insurers; the abrogation of Ins. Code § 790.03(h) private actions does not eliminate this Court’s jurisdiction over the present claims. Zhang v. Superior Court (2013) 54 Cal.4th 826 corrects any misread that insurer-related immunities categorically bar the present principal-liability and extrinsic-fraud theories.

56. Cross-reference: The related bad-faith action Rosario v. CSAA Insurance Exchange, CGC-25-631802, addresses CSAA’s institutional conduct from the insurance-contract perspective. The present action addresses fraud on the tribunal.

57. On information and belief, CSAA had not issued any reservation-of-rights letter, coverage analysis letter, or coverage position letter to Plaintiff on or before February 25, 2021; Plaintiff personally received none. The absence of a reservation-of-rights sequence before the February 25, 2021 denial is part of CSAA’s institutional handling of the claim and is relevant to whether the claim was treated as serious investigation versus routine denial.

1 **IV.I — The Navaratnasingham Admission (Trial Day 7, April 16, 2025)**

2 58. On April 16, 2025 (Trial Day 7), the Court asked defense counsel about body-worn camera
3 footage on the defense exhibit list. On the **same trial day**, the certified reporter’s transcript
4 reflects a rhythm of Position-A denials followed by the Position-B “provided by Dolan” ad-
5 mission.

6 59. **Position-A denials (RT 7):** (i) p. 156, ll. 5–16: the supplemental report was “not anything
7 we received as part of the subpoena”; (ii) p. 162, ll. 4–12: “I don’t know what recording he is
8 referring to” and a dying-declaration framing (“he is here present”); (iii) p. 207, ll. 15–16: “I
9 don’t know who prepared these transcripts”; (iv) p. 207, ll. 19–21: “lacks foundation as we
10 have no idea who this person is”; (v) pp. 207–208: stacked objections on relevance and that
11 the clip would be “unduly prejudicial”; (vi) Pre-trial Jan. 27, 2025 hearing: “we really don’t
12 know who redacted these things and what — if that representation is true.” (Hr’g Tr. Jan. 27,
13 2025, p. 31, ll. 1–5.) This imputation of fabrication against Plaintiff — made while defense
14 was in possession of the originals via Dolan — is scienter evidence under Hobart v. Hobart
15 Estate Co. (1945) 26 Cal.2d 412.

16 60. **Position-B admission (same day):** Navaratnasingham stated: “They were provided by Dolan.
17 He has had them for whatever, sure.” (RT 7, p. 213, ll. 13–15.)

18 61. She then described having “five videos” and paring them down to “about 8 or 9 minutes” for
19 the jury.

20 62. This sequence is the same intra-hearing contradiction rhythm as Feb. 18, 2025 (Position-A
21 at p. 141 versus Position-B at p. 181), compressed into a single trial day. The admission
22 establishes that: (a) the defense had the body-worn camera footage; (b) the footage came
23 from Dolan Law Firm (the same source as the 911 audio in Jessup’s testimony); (c) the
24 defense had curated these materials for trial; and (d) Plaintiff had had them for a substantial
25 period, consistent with Jessup’s testimony.

26 63. The April 16, 2025 admission is irreconcilable with Navaratnasingham’s February 18, 2025
27 “news to me” statement and with MIL No. 17’s assertion that “Defendant has no idea where
28 this 911 call log or audio recording came from.” The admission is the operational linchpin

1 of this action. It converts the Phase One lulling into demonstrable falsity and establishes
2 scienter.

3 **IV.J — Discovery of Fraud and Timeliness**

- 4 64. Plaintiff first discovered the fraud on or about January 17, 2025, when the defense filed Mo-
5 tions in Limine Nos. 6 and 17 asserting that materials served on defense counsel in August–
6 September 2022 were “not produced in discovery” and of “unknown provenance.”
- 7 65. Plaintiff filed the original complaint in this action on December 23, 2025, within weeks of
8 confirming the scope of the fraud through post-trial record review. In re Marriage of Stevenot
9 (1984) 154 Cal.App.3d 1051, 1068, 1071 (accrual and diligence in the equitable fraud set-
10 ting).
- 11 66. Under CCP § 338(d), the three-year statute of limitations for fraud accrues on discovery of
12 the fraud. Plaintiff’s claims are timely.
- 13 67. Independent equitable actions to set aside judgments procured by extrinsic fraud are governed
14 by equitable principles, not by CCP § 473(b)’s six-month deadline. Kougasian v. TMSL, Inc.
15 (2004) 118 Cal.App.4th 1028. Where out-of-court lulling contributes to a party’s lack of
16 awareness, accrual and diligence are measured from discovery of the concealed or misrepre-
17 sented facts, not from entry of the underlying judgment. In re Marriage of Stevenot (1984)
18 154 Cal.App.3d 1051, 1068, 1071.

20 **IV.K — Defendants’ Years-Long Silence and Acquiescence**

- 21 68. The chain of events establishing Defendants’ estoppel by silence begins with the production
22 of the 911 audio, body-worn camera footage, and CAD logs to prior defense counsel (Cham-
23 bers/CSK) in August–September 2022. On information and belief, the 911 audio, body-worn
24 camera footage, and CAD logs have been in Plaintiff’s counsel’s possession since 2021, with
25 transmission from SFPD traced to that period. (Hearing Tr. Feb. 18, 2025, p. 139, ll. 6–11
26 (Jessup): “We had 911 emergency services send those to you and Dolan had a copy since
27 2021.”) The juxtaposition is dispositive: when Navaratnasingham stated “this is news to me”
28 at p. 141, ll. 4–11 of the same hearing, she was contradicting her own co-counsel’s repre-

1 sentation made minutes earlier on the same record. The “news to me” representation is not
2 mistaken recollection; it is irreconcilable with the Jessup statement on the same transcript
3 page.

4 69. On August 18, 2022, the 911 audio recording was served on defense counsel. This is the **post-**
5 **service** anchor date from which the **883-day** silence window in Paragraphs 32–33 and 76 is
6 calculated (August 18, 2022 through January 17, 2025). On information and belief, a **full**
7 **availability window** of approximately **1,400 days** extends back to roughly May 2021 based
8 on SFPD transmission and defense-side custody, including **prior defense counsel who ap-**
9 **peared in this matter before Chambers**, as reflected in the same hearing testimony. (Hear-
10 ing Tr. Feb. 18, 2025, p. 139, l. 11.) The 883-day figure is preserved as the post-service
11 measure; the 1,400-day figure is pleaded as the broader availability measure, not a replace-
12 ment.

13 70. On September 30, 2022, defendant Abdelhalim was deposed. At this deposition:

- 14 (a) Defense counsel (Chambers) was present;
15 (b) Abdelhalim gave sworn testimony regarding placing the 911 call and related questioning;
16 (c) Marked deposition exhibits were images.

17 71. On May 4, 2023, the Substitution of Attorney (Transaction ID #69953800) was filed. The
18 defense file was transferred from Chambers/CSK to PSA on or about this date.

19 72. On February 1, 2024, successor counsel (Reyna/PSA) issued a Compex subpoena (Order
20 No. CA1147102-021) to the San Francisco Police Department requesting “all documents,
21 records stored in any format” relating to the collision—which would necessarily encompass
22 the 911 audio, body-worn camera footage, CAD logs, and SFPD Report 210079556.

23 73. The issuance of this subpoena constitutes affirmative evidence of defense-side knowledge that
24 these records existed and were relevant to the case. One does not subpoena records one has
25 never heard of.

26 74. On February 26, 2024, SFPD produced records in response to the Reyna subpoena, including
27 materials relating to SFPD Report 210079556.

28 75. On September 9, 2024, Plaintiff served CAD identifiers on successor counsel (Reyna). No

objection was raised in response to this service. **Documentary pin cites:** Plaintiff served these CAD identifiers on Reyna in the September 9, 2024 Further Responses to Form Interrogatories (FROG, p. 28, ll. 23–25) and Supplemental Responses to Special Interrogatories (SROG, p. 9, ll. 9–11), as Plaintiff confirmed on the record at Hr’g Tr. Jan. 27, 2025, p. 32, ll. 1–16. This converts the pleaded allegation from conclusory to documentary and closes the circuit between discovery service, courtroom preservation, and Defendants’ 883-day silence.

76. On January 17, 2025—130 days after the September 9, 2024 CAD service, and 883 days after the initial August 18, 2022 service—successor counsel filed MIL No. 6 and MIL No. 17 asserting that the materials were “not produced in discovery” and of “unknown provenance.”

77. Under Evidence Code § 623, the conduct of a party is evidence against the party when: (1) the party had knowledge or notice of a fact; (2) the party had an opportunity to speak or act in response; (3) a reasonable person in the party’s position would have spoken or acted; and (4) the party remained silent or inactive.

78. Defendants’ 883-day silence satisfies all four elements:

(a) **Knowledge:** Defense counsel received the materials in August–September 2022; Chambers appeared at the August 18, 2022 Rosario deposition and the September 30, 2022 Abdelhalim deposition (911-related testimony); and (through successor counsel Reyna) issued a subpoena for the identical materials on February 1, 2024.

(b) **Opportunity:** Defense counsel had continuous opportunity from August 2022 through January 2025 to file a motion to compel, serve a discovery objection, or raise a meet-and-confer challenge.

(c) **Reasonableness:** A reasonable defense attorney who genuinely believed the materials were inauthentic, improperly produced, or of unknown provenance would have raised that objection during the 883-day window—not on the eve of trial.

(d) **Silence:** No objection, motion, or challenge was raised until MIL No. 17 on January 17, 2025.

79. Under City of Long Beach v. Mansell (1970) 3 Cal.3d 462, 493, a party who remains silent when it has a duty to speak may be estopped from later asserting a contrary position.

1 80. Defendants are estopped by their years-long silence from contesting the authenticity, receipt,
2 or provenance of materials they received in discovery, addressed in sworn deposition course
3 without timely written challenge, subpoenaed, and transmitted without objection during the
4 883-day window.

5 **IV.L — Authentication by Acquiescence and Waiver**

6 81. Under Evidence Code § 1414(b), a writing may be authenticated by evidence that a party
7 against whom it is offered has, at any time, treated it as authentic.

8 82. Defendants treated the 911 audio, body-worn camera footage, and CAD logs as authentic
9 through the following conduct:

10 (a) **Deposition course (Aug. 18 and Sept. 30, 2022):** Chambers appeared at Mr. Rosario’s Au-
11 gust 18, 2022 deposition (the same period as the August–September 2022 production Jessup
12 described) and at Mr. Abdelhalim’s September 30, 2022 deposition, where Abdelhalim gave
13 sworn 911-related testimony; defense raised **no written** authenticity or provenance challenge
14 in the 883-day window despite receipt and that deposition course.

15 (b) **File transfer (May 4, 2023):** The Substitution of Attorney (Transaction ID #69953800)
16 transferred the defense file—including these materials—from Chambers/CSK to PSA. A file
17 transfer presupposes that the materials being transferred are what they purport to be.

18 (c) **Compex subpoena (Feb. 1, 2024):** Reyna’s subpoena to SFPD requesting the identical ma-
19 terials presupposes their authenticity. One does not subpoena materials one believes are fab-
20 ricated or unreliable.

21 (d) **CAD transmission (Sept. 9, 2024):** Plaintiff served CAD identifiers on Reyna. No objection
22 was raised.

23 (e) **Trial curation (Apr. 16, 2025):** Navaratnasingham testified that the defense had “five videos”
24 and had pared them down to “about 8 or 9 minutes” for the jury. This active curation presup-
25 poses authenticity.

26 (f) **Tribunal finding of authentication waiver (Feb. 18, 2025):** The Court itself recognized that
27 defense had waived authenticity: “They’re not questioning the authenticity in the documents.”
28 (Hr’g Tr. Feb. 18, 2025, p. 174, ll. 19–25 (Wong, J.)) This is the Court’s own on-record

1 recognition that defense had waived authenticity — made two months before the Apr. 16,
2 2025 “provided by Dolan” admission confirmed receipt.

3 83. Under CCP § 2030.290, objections to interrogatories not raised within the statutory time
4 are waived. Under CCP § 2031.240, objections to production requests not raised within the
5 statutory time are waived. By analogy, authenticity objections not raised within the 883-day
6 window are waived.

7 84. On April 17, 2025 (Trial Day 8), defendant Abdelhalim authenticated the 911 audio on the
8 record: “Yes. That is my voice.” (RT 8, p. 108, l. 28; see also p. 111, l. 1.) This authentication
9 by the party opponent constitutes ratification and admission.

10 85. Defendants are estopped by their conduct from contesting authenticity. Their years-long treat-
11 ment of the materials as authentic—through use, transfer, subpoena, and curation—waives
12 any authenticity challenge asserted for the first time on the eve of trial.

13 **IV.M — Judicial Estoppel: Inconsistent Positions Adopted by the Tribunal**

14 86. Judicial estoppel prevents a party from asserting a position in a legal proceeding that is con-
15 trary to a position previously taken in the same or some earlier proceeding. Jackson v. County
16 of Los Angeles (1997) 60 Cal.App.4th 171, 183; Aguilar v. Lerner (2004) 32 Cal.4th 974,
17 986–987 (controlling synthesis of Jackson); MW Erectors, Inc. v. Niederhauser Ornamental
18 & Metal Works Co. (2005) 36 Cal.4th 412, 422.

19 87. The doctrine applies when: (1) the same party has taken two totally inconsistent positions; (2)
20 in a judicial proceeding; (3) the first position was accepted by the tribunal; (4) the positions
21 are not taken due to ignorance, fraud, or mistake; and (5) the party asserting the inconsistent
22 position derived an unfair advantage.

23 88. Defendants satisfy all five elements:

24 **Position A (The Suppression):**

25 (a) MIL No. 6 (Jan. 17, 2025): Materials were “not produced in discovery.” (CT Vol. 1, pp. 149–
26 151.)

27 (a.i) Jan. 27, 2025 hearing: “completely lacks foundation; not authenticated. We have no idea. . .
28 We have not heard any recordings from our client.” (Hr’g Tr. Jan. 27, 2025, p. 19, ll. 7–13.)

1 (a.ii) Jan. 27, 2025 hearing: “we never received these CDs, certainly... We never received these
2 CDs. We never — this was never produced in discovery, and he has had it for four years.” (Hr’g
3 Tr. Jan. 27, 2025, p. 34, ll. 1–10.)

4 (b) MIL No. 17 (Jan. 17, 2025): “Defendant has no idea where this 911 call log or audio recording
5 came from.” (CT Vol. 1, p. 238.)

6 (c) Feb. 18, 2025 hearing: “This is news to me.” (Hearing Tr. Feb. 18, 2025, p. 141, ll. 4–11.)

7 (d) Apr. 16, 2025 trial: “Not anything that we received as part of the subpoena.” (RT 7, p. 156,
8 ll. 5–16.)

9 **Position B (The Admission):**

10 (e) Feb. 18, 2025 hearing: “we oppose the continuance... the body cam footage, the 911 call,
11 all this stuff has been in his possession since August.” (Hearing Tr. Feb. 18, 2025, p. 181, ll.
12 6–23.)

13 (f) Apr. 16, 2025 trial: “Sure. They were provided by Dolan. He has had them for whatever,
14 sure.” (RT 7, p. 213, ll. 13–15.)

15 **89. Tribunal acceptance of Position A:** The Court accepted Navaratnasingham’s “news to me”
16 representation at the February 18, 2025 hearing, responding “I see. Okay.” (Hearing Tr.
17 Feb. 18, 2025, p. 141, l. 15.) The Court denied Plaintiff’s continuance request and granted
18 MIL No. 17 without prejudice based on these representations. The Court excluded the sup-
19 plemental police report at trial based on defense counsel’s representation that it was “not
20 anything that we received as part of the subpoena.”

21 **90.** The contradiction sequence is not merely intra-hearing. It is the three-hearing arc of Jan. 27,
22 2025 (“we never received these CDs, certainly” — Hr’g Tr. Jan. 27, 2025, p. 34, ll. 1–10),
23 Feb. 18, 2025 (“this is news to me... may have received it” — Hr’g Tr. Feb. 18, 2025,
24 p. 141, ll. 4–11), and Apr. 16, 2025 (“provided by Dolan” — RT 7, p. 213, ll. 13–15). The
25 Feb. 18, 2025 p. 181 admission was made at the **same hearing** and by the **same attorney**
26 as the Position-A representation at p. 141 (MSC-date and “news to me”). This intra-hearing
27 contradiction shows the positions were **not taken due to ignorance, fraud, or mistake**—the
28 fourth element of judicial estoppel under MW Erectors, Inc. v. Niederhauser Ornamental

1 & Metal Works Co. (2005) 36 Cal.4th 412, 422—and forecloses any “ignorance” narrative
2 on the pleadings. Under Aguilar v. Lerner (2004) 32 Cal.4th 974, 986–987, that ascend-
3 ing sequence of factually incompatible positions — each calibrated to a different procedural
4 moment — is the precise fact-pattern to which judicial estoppel applies.

5 91. **Total inconsistency:** Position A asserts that the materials were not produced, not received,
6 and of unknown provenance. Position B admits that the materials were “provided by Dolan”—
7 the same source Jessup testified had produced them to defense counsel in August–September
8 2022. These positions are mutually exclusive.

9 92. **Not taken from ignorance, fraud, or mistake:** Defense counsel had the September 30,
10 2022 Abdelhalim deposition transcript (Chambers present; 911-related testimony) and Jes-
11 sup’s February 18, 2025 hearing testimony about August–September 2022 production and
12 service. Defense counsel had the February 1, 2024 Reyna subpoena in their own files. The
13 casual phrasing of Position B—“for whatever, sure”—demonstrates that the Dolan origin was
14 a known, settled fact within the defense team, not a recent discovery.

15 93. **Unfair advantage:** The defense obtained rulings that excluded evidence, denied continu-
16 ances, and foreclosed Plaintiff’s ability to authenticate and sequence his evidentiary presen-
17 tation. The defense obtained a 9–3 verdict. These are the concrete advantages derived from
18 Position A.

19 94. Defendants are judicially estopped from retaining the benefits of a verdict procured through
20 Position A when Position B proves Position A was false.

21 **IV.N — Lost Procedural Windows as Reliance Injury (Evid. Code § 623)**

22 95. Plaintiff’s reliance on Defendants’ silence and acquiescence was reasonable, concrete, and re-
23 sulted in the following lost procedural opportunities—each mapped to the Kulchar v. Kulchar
24 (1969) 1 Cal.3d 467 extrinsic-fraud channel it supports and to the Plaintiff Declaration para-
25 graphs that will prove it (mirroring the minimum-merit elementization under Navellier v.
26 Sletten (2002) 29 Cal.4th 82, 88–89; Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th
27 811, 820; Soukup v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260, 291):

Lost procedural window	<u>Kulchar</u> channel / element	Plaintiff Declaration (proof)
(a) No motion to preclude defense use	Reliance and prejudice: Plaintiff reasonably deferred adversarial motions while authenticity appeared resolved	Pl. Decl. ¶¶ 11–13, 18–20
(b) No subpoena for production-history logs	Concealment / deception: production history not obtained from prior custodian before substitution	Pl. Decl. ¶¶ 7–10, 15
(c) No foundation depositions	Prevention from presenting a full case: closed window to sequence SFPD foundation before trial	Pl. Decl. ¶¶ 11–13, 18–19
(d) No opposition to MIL 6/17 with foundational record	Tribunal reliance / structural impairment after false provenance framing	Pl. Decl. ¶¶ 18–20
(e) No CCP § 2023.030 discovery-sanctions / fraud-on-the-court motion	Foreclosed motion for discovery sanctions before trial	Pl. Decl. ¶¶ 18–20

95A. (e) Foreclosed Discovery Sanctions Motion: Plaintiff lost the opportunity to file a dedicated CCP § 2023.030 discovery-sanctions / fraud-on-the-court motion before the May 12, 2025 trial because the Court denied the only two procedural vehicles Plaintiff used to raise the issue: the January 27 and February 18 motions for continuance. The January 27 denial (Hr’g Tr. Jan. 27, 2025, p. 55) and February 18 denial (Hr’g Tr. Feb. 18, 2025, p. 181) foreclosed the briefing runway necessary for a noticed § 2023.030 motion on the suppression / concealment pattern.

96. Each of these lost opportunities is directly traceable to Defendants’ Phase One silence and acquiescence. Had Defendants raised their purported authenticity concerns at any point dur-

ing the 883-day window, Plaintiff would have taken the steps enumerated above to establish authentication through independent means.

97. This constitutes the “reliance” element of estoppel by silence under Evidence Code § 623.

IV.O — Fraud on the Court and CCP § 473(d) Vacatur Theory

98. Under Kerns v. CSE Insurance Group (2003) 106 Cal.App.4th 368, 387–388, a judgment procured through fraud on the court may be set aside under CCP § 473(d) as a judgment “taken against [a party] through his or her mistake, inadvertence, surprise, or excusable neglect.”

99. The MIL rulings and trial-day exclusions at RT 7 (ll. 2875, 2888–2896, 2990–2994, 3024–3057, 3886, 3888, 3892–3896, 3968) were induced by Defendants’ concealment of the production history and their affirmative misrepresentations regarding provenance.

100. “Where counsel perpetrates a fraud on the court in obtaining a judgment, the judgment is void ab initio.” In re Marriage of Melton (1994) 28 Cal.App.4th 931, 937.

101. Plaintiff is entitled to vacatur of the April 25, 2025 judgment under both (a) the Court’s inherent equity jurisdiction to set aside judgments procured by extrinsic fraud (Olivera v. Grace, Kougasian), and (b) CCP § 473(d) as a judgment procured through misconduct of the prevailing party’s counsel.

102. This fraud-on-the-court theory dovetails with Count 1’s equitable-vacatur theory but adds the § 473(d) overlay as an alternative statutory vehicle.

V. GRAVAMEN DISCLAIMER AND PLEADING-STAGE DOCTRINAL IMMUNITY

V.A — Estoppel / Acquiescence Disclaimer and Doctrinal Overlay

102A. **CCP § 425.17 threshold (before Flatley / Kougasian / Cashman prongs).** Before reaching whether any claim “arises from” protected activity under City of Cotati v. Cashman (2002) 29 Cal.4th 69 or whether conduct is “illegal as a matter of law” under Flatley v. Mauro (2006) 39 Cal.4th 299, the Court should determine whether **Code of Civil Procedure § 425.17** removes one or more causes of action from **CCP § 425.16** altogether. **§ 425.17(c)** targets causes of action against **insurers and commercial service providers** arising from **representations of fact about**

1 **business operations; § 425.17(b)** targets actions brought **solely in the public interest** satisfying
2 (b)(1)–(b)(3). **§ 425.17(e)** provides that if the Court denies an anti-SLAPP motion **based on an**
3 **exemption under this section, subdivision (i) of § 425.16** and **CCP § 904.1(a)(13)** interlocutory
4 appeal provisions **do not apply** to that cause of action. Club Members for an Honest Election v.
5 Sierra Club (2008) 45 Cal.4th 309, 318–322.

6 **102B. Incorporation.** Plaintiff incorporates by reference **Paragraphs 18A–18D** of this Complaint
7 as though fully set forth.

8 **102C. Order of analysis.** If the Court finds an exemption inapplicable to a given cause of action,
9 Plaintiff proceeds to the Cashman two-step framework and the Kougasian v. TMSL, Inc. (2004)
10 118 Cal.App.4th 1028, 1034–1036 extrinsic-fraud channel and Flatley illegality alternative pleaded
11 below.

12 **103. Paragraph 1 — No Re-Weighing Request:** Plaintiff does not ask this Court to reweigh
13 evidence admitted at trial, reconsider the credibility findings of the jury, or second-guess the
14 factual determinations made by the trier of fact. Plaintiff asks this Court to recognize that the
15 judgment was procured through extrinsic fraud—conduct that operated outside the trial itself
16 to prevent Plaintiff from fully presenting his case.

17 **104. Paragraph 2 — Evid. Code § 623 (Estoppel by Silence):** Under Evidence Code § 623, De-
18 fendants’ 883-day silence regarding the authenticity and provenance of the 911/BWC/CAD
19 materials, followed by their reversal to an “unknown provenance” position on the eve of trial,
20 constitutes conduct on which this Court may rely as evidence against Defendants. Defendants
21 are barred by their own years-long silence from contesting the authenticity, receipt, or prove-
22 nance of materials they received in discovery, addressed in sworn deposition course without
23 timely written challenge, transmitted, and subpoenaed without objection.

24 **105. Paragraph 3 — Evid. Code § 1414(b) (Authentication by Conduct):** Under Evidence
25 Code § 1414(b), Defendants’ treatment of the 911/BWC/CAD materials as authentic—through
26 **receipt in discovery and sworn deposition course without timely written challenge**, file
27 transfer, subpoena issuance, and trial curation—constitutes authentication by acquiescence.
28 Defendants waived any authenticity challenge by their 883-day course of conduct treating the

materials as what they purport to be.

106. **Paragraph 4 — Judicial Estoppel, Waiver, and § 2023.010 Discovery Misuse:** Defendants are judicially estopped from asserting Position B (the “Dolan” admission) while simultaneously retaining the benefits of Position A (the “unknown provenance” suppression). Additionally, under CCP § 2023.010(d) and (e), employing discovery methods that cause unwarranted annoyance, embarrassment, or oppression, and failing to respond or submit to authorized discovery, constitutes misuse of the discovery process warranting sanctions. Defendants’ strategic silence—failing to raise authenticity challenges during the 883-day window, then asserting them on the eve of trial to exclude evidence—constitutes discovery misuse.

107. **Gravamen Anchor:** The injury-producing acts in this action are: (a) out-of-court representations directed to Plaintiff inducing reliance; (b) the May 4, 2023 file-transfer concealment; (c) CSAA’s institutional direction and ratification of the foregoing; and (d) the court-facing misrepresentations that induced exclusionary rulings. No defendant is sued for representations made to the jury for the jury to weigh. No defendant is sued for exercising rights of advocacy. Count 7 does not change that anchor: it tracks the same pre-adjudicative and tribunal-facing channels. The gravamen is **extrinsic fraud operating outside the adjudicative process**.

V.B — Pleading-Stage Doctrinal Immunity (Demurrer and Anti-SLAPP)

108. **V.B.1 — Anti-SLAPP step one (Park / Bonni / Wilson) and mixed conduct (Baral).** Under City of Cotati v. Cashman (2002) 29 Cal.4th 69, 76, the anti-SLAPP statute proceeds in two steps; Defendants may not collapse step one into a monolithic “litigation conduct” label. Park v. Bd. of Trustees (2017) 2 Cal.5th 1057, 1062–1064 requires identification of the **injury-producing act** underlying each claim. Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1010–1012 requires parsing **each claim and each alleged act**; label-based treatment is error. Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871, 884 requires that protected activity be tied to an **element** of the claim, not merely evidentiary support. Baral v. Schnitt (2016) 1 Cal.5th 376, 396 (mixed-conduct complaints). If step two is reached, Plaintiff has pled and will prove minimum merit (Navellier v. Sletten (2002) 29 Cal.4th 82, 88–89; Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 820; Soukup v. Law Offices of Herbert

Hafif (2006) 39 Cal.4th 260, 291), including through the lost-window catalog in Paragraph 95.

Gravamen and injury-producing acts by cause of action (element-level Bonni matrix):

- **First Cause of Action:** Independent action / vacatur
 - **Element at issue:** Extrinsic fraud / procurement
 - **Act alleged to satisfy element:** Out-of-court lulling; file-transfer concealment; induced rulings
 - **Communicative / noncommunicative:** Mixed: lulling may be communicative toward opposing party; transfer is noncommunicative
 - **Protected petitioning? / Exception:** No — gravamen is noncommunicative concealment plus procurement; Action Apartment Ass’n v. City of Santa Monica (2007) 41 Cal.4th 1232, 1242–1247
- **Second Cause of Action:** Fraudulent concealment
 - **Element at issue:** Concealment / duty / reliance
 - **Act alleged to satisfy element:** Production-history omission; file custody
 - **Communicative / noncommunicative:** Noncommunicative institutional conduct
 - **Protected petitioning? / Exception:** No — Kimmel / Rusheen line (Paragraph 128)
- **Third Cause of Action:** Intentional misrepresentation
 - **Element at issue:** Misrepresentation / reliance
 - **Act alleged to satisfy element:** Silence plus tribunal-directed misrepresentations
 - **Communicative / noncommunicative:** Mixed
 - **Protected petitioning? / Exception:** Off-record lulling is not petitioning; tribunal statements fall within extrinsic-fraud / Flatley channels pled herein
- **Fourth Cause of Action:** Aiding and abetting, ratification, civil conspiracy (CSAA)
 - **Element at issue:** Direction / ratification / agreement to common plan
 - **Act alleged to satisfy element:** Funding, approval of positions, ratification of transfer; inter-firm alignment on file handoff and court-facing posture
 - **Communicative / noncommunicative:** Noncommunicative oversight plus pleaded agreement channel

1 – **Protected petitioning? / Exception:** No; conspiracy is a joint-liability theory attaching
2 to underlying torts, not a freestanding tort (Applied Equipment Corp. v. Litton Saudi
3 Arabia Ltd. (1994) 7 Cal.4th 503)

4 • **Fifth Cause of Action:** Declaratory relief

- 5 – **Element at issue:** Same controversies as substantive counts
6 – **Act alleged to satisfy element:** Aligns with Counts 1–4 and 7
7 – **Communicative / noncommunicative:** Same as underlying count
8 – **Protected petitioning? / Exception:** Same

9 • **Sixth Cause of Action:** § 6128(a) deceit

- 10 – **Element at issue:** Deceit of the tribunal
11 – **Act alleged to satisfy element:** MIL and hearing misrepresentations
12 – **Communicative / noncommunicative:** Communicative but illegal as matter of law
13 – **Protected petitioning? / Exception:** Flatley v. Mauro (2006) 39 Cal.4th 299, 320–325;
14 Lefebvre v. Lefebvre (2011) 199 Cal.App.4th 696, 704–705

15 • **Seventh Cause of Action:** Constructive fraud (Civ. Code § 1573)

- 16 – **Element at issue:** Confidential or fiduciary advantage; breach by misleading act or
17 nondisclosure; inducement; harm (Assilzadeh v. California Federal Bank (2000) 82
18 Cal.App.4th 399, 415)
19 – **Act alleged to satisfy element:** Same production-history and tribunal-facing course as
20 Counts 2–3 without requiring intent to deceive
21 – **Communicative / noncommunicative:** Mixed (institutional custody and tribunal-directed
22 misrepresentations)
23 – **Protected petitioning? / Exception:** Same noncommunicative Kimmel v. Goland
24 (1990) 51 Cal.3d 202, 211–212 channel; Action Apartment Ass’n v. City of Santa
25 Monica (2007) 41 Cal.4th 1232, 1242–1247; Flatley v. Mauro (2006) 39 Cal.4th 299,
26 320–325

27 Plaintiff incorporates by reference **Exhibit R** (Gravamen Matrix by Cause of Action) as the single-
28 page hearing roadmap for the same analysis.

109. **V.B.2 — Civil Code § 47(b) / Rusheen “necessarily related” boundary.** Each injury-producing act pled herein is either (a) noncommunicative institutional conduct (file-custody transfer, production-history omission, CSAA agency oversight) outside Civil Code § 47(b) under Kimmel v. Goland (1990) 51 Cal.3d 202, 211–212 and not “necessarily related” to any privileged communication under Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1058; (b) extrinsic fraud on the tribunal within the exception recognized in Action Apartment, supra, 41 Cal.4th at 1242–1247; or (c) illegal conduct as a matter of law under Flatley, supra, 39 Cal.4th at 299, 320–325 and Lefebvre, supra, 199 Cal.App.4th at 704–705. The litigation privilege describes when a **communication** in a judicial proceeding is privileged (Silberg v. Anderson (1990) 50 Cal.3d 205, 212–214); it does not convert institutional file-custody acts into privileged “communications.” Jacob B. v. County of Shasta (2007) 40 Cal.4th 948, 960 (no extension by analogy beyond the statute’s communicative core). Seltzer v. Barnes (2010) 182 Cal.App.4th 953, 970 (post-Rusheen conduct/communication line). Gallanis-Politis v. Medina (2007) 152 Cal.App.4th 600, 611 (noncommunicative acts outside privilege). Immunity doctrines tied to adverse-party counsel are narrow: the privilege “shields litigants, attorneys and witnesses from liability for . . . virtually all torts **except malicious prosecution.**” (Mattco Forge, Inc. v. Arthur Young & Co. (1992) 5 Cal.App.4th 392, 407, quoted in Kolar v. Donahue, McIntosh & Hammerton (2006) 145 Cal.App.4th 1532, 1537–1540.) Pavicich v. Santucci (2000) 85 Cal.App.4th 382, 396 (context-specific; third-party injury patterns). These authorities do not erase an independent equitable action whose gravamen is extrinsic fraud.

110. **V.B.3 — Res judicata / collateral estoppel (Crowley / Mycogen / Boeken) and direct equitable action.** Collateral estoppel and res judicata require the same primary right and necessarily decided issues (Crowley v. Katleman (1994) 8 Cal.4th 666; Lucido v. Superior Court (1990) 51 Cal.3d 335, 341–342; Mycogen; Boeken—see Paragraph 24). This action is a **direct** equitable action on the procurement of the judgment, not a collateral attack on its face. Under Kougasian, supra, 118 Cal.App.4th at 1034–1036 and Olivera v. Grace (1942) 19 Cal.2d 570, 575–576, an independent action in equity is the procedural vehicle California

recognizes for this species of fraud; Wouldridge v. Burns (1968) 265 Cal.App.2d 82, 84–85 governs collateral attacks **without** that vehicle and does not apply here.

111. **V.B.4 — CCP § 473(b) category error and limitations.** This proceeding is an independent equitable action, not a motion for relief under CCP § 473(b) in the underlying case; the six-month § 473(b) clock does not substitute for equitable accrual. Fraud claims accrue on discovery (Kougasian; Paragraphs 64–67; In re Marriage of Stevenot (1984) 154 Cal.App.3d 1051, 1068, 1071).

112. **V.C — Disclaimer re in-court statements.** Plaintiff does **not** seek vacatur or damages **based on what Defendants said at trial** to the jury for the jury to weigh. Vacatur is sought based on (a) out-of-court lulling and non-disclosure that operated before and outside trial advocacy, and (b) the May 4, 2023 file-transfer concealment of production history. Trial-day and hearing-day statements may be pleaded **solely** as **judicial-estoppel** evidence and **scienter** evidence—not as freestanding injury-producing acts in place of Paragraphs 4, 45, and 107.

113. **V.D — Specific proffer / leave to amend (Coffman).** Under Coffman v. Produce Terminal Cold Storage Co. (2009) 176 Cal.App.4th 1135, leave to amend should be granted unless amendment would be futile. If the Court finds any pleading deficiency, Plaintiff requests leave to amend and proffers that amendment would supply with greater specificity: (1) the content and source of CSAA directives to defense counsel concerning authentication, provenance, and production history of 911 audio and CAD records (including CSAA personnel issuing each directive); (2) the identity of file-transfer recipients at successor counsel (PSA) on and after May 4, 2023 and the specific categories of production-history materials not conveyed; and (3) the dates, participants, and substance of out-of-court representations on which Plaintiff relied to defer authentication, subpoena, and sequencing steps. These particulars deepen—but do not change—the gravamen already pleaded.

VI. CLAIM ARCHITECTURE AND NON-SEVERABILITY (MOREHART)

113A. **Single primary-right nucleus.** All seven counts arise from a **common nucleus of operative fact**: Phase One silence and acquiescence; May 4, 2023 file transfer without adequate

1 production-history conveyance; CSAA direction and ratification; and Phase Two court-facing mis-
2 representations inducing structural rulings. Morehart v. County of Santa Barbara (1994) 7 Cal.4th
3 725, 731–732 (one final judgment disposing of all causes of action between the parties; no piece-
4 meal appeals).

5 **113B. No manufactured finality.** Plaintiff opposes any motion to **sever** causes of action or enter
6 **partial judgment** on fewer than all counts as to any defendant. An order that disposes of fewer
7 than all causes of action between the parties is **not a final judgment** for purposes of appeal absent
8 a valid § 577 judgment on fewer than all claims (Kurwa v. Kislinger (2013) 57 Cal.4th 1097,
9 1105–1106). Defendants should not be permitted to manufacture appealable finality by voluntary
10 dismissal or severance.

11 **113C. Joint and several liability (alternative).** To the extent multiple defendants participated in a
12 common plan of concealment or tribunal-facing misrepresentations, Plaintiff seeks **joint and sev-**
13 **eral** liability among responsible defendants under American Motorcycle Assn. v. Superior Court
14 (1978) 20 Cal.3d 578, 587–602 (comparative fault; equitable modification of joint and several
15 liability as the Court deems just).

16 **113D. Declaratory and coercive relief.** Except as expressly stated in the **Prayer**, Plaintiff does
17 **not** seek a **preliminary injunction or TRO** that would trigger CCP § 904.1(a)(6) interlocutory
18 appeal of an injunctive order. Plaintiff seeks **declaratory relief** under CCP § 1060 and final
19 judgment remedies tried on the same record.

20
21 **VII. CAUSES OF ACTION (COUNTS 1–7, INCLUDING SEVENTH CAUSE:**
22 **CONSTRUCTIVE FRAUD — CIV. CODE 1573)**

23 **FIRST CAUSE OF ACTION**

24 **(Independent Action in Equity for Vacatur; Extrinsic Fraud; Alternatively, Extrinsic Mis-**
25 **take)**

26 (By Plaintiff Against All Defendants)

27 114. Plaintiff incorporates by reference all preceding paragraphs as though set forth fully herein.

28 115. Under Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471, extrinsic fraud occurs when a party is

“deliberately kept in ignorance of the action or proceeding, or in some other way fraudulently prevented from presenting his claim or defense.”

116. Under Westphal v. Westphal (1942) 20 Cal.2d 393, 397, perjury at trial is intrinsic, but fraud that prevents a party from fully presenting his case is extrinsic.

117. Under Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028, 1034–1036, an independent action in equity to set aside a judgment procured by extrinsic fraud is not barred by res judicata and may proceed in the trial court.

118. Plaintiff satisfies the Kulchar four-factor test for extrinsic fraud. The same two-phase pattern is further pleaded as within the Flatley v. Mauro (2006) 39 Cal.4th 299, 320–325 illegal-conduct channel: “section 425.16 cannot be invoked by a defendant whose assertedly protected activity is illegal as a matter of law and, for that reason, not protected by constitutional guarantees of free speech and petition.” It mirrors Lefebvre v. Lefebvre (2011) 199 Cal.App.4th 696, 704–705 (knowing false out-of-court conduct inducing tribunal reliance held illegal as a matter of law and not protected petitioning).

(a) **Concealment/Deception:** Defendants concealed the production history of the 911/BWC/CAD materials by (i) remaining silent for 883 days regarding authenticity, (ii) transferring the defense file without the production history, and (iii) making court-facing misrepresentations asserting the materials were “not produced” and of “unknown provenance.”

(b) **Structural Prevention:** Defendants’ conduct prevented Plaintiff from fully presenting his case by inducing the tribunal to deny continuances, grant exclusionary MILs, and defer or exclude critical evidence at trial. Defendants not only made the Phase Two misrepresentations but affirmatively opposed every Plaintiff request for a curative continuance, blocking the only procedural mechanism that would have mitigated the extrinsic harm. See Hearing Tr. Jan. 27, 2025, p. 15, ll. 1–16 (“We oppose any request for continuance of this trial date... discovery has been closed.”); Hearing Tr. Jan. 27, 2025, p. 55, ll. 8–19; Hearing Tr. Jan. 27, 2025, p. 57, ll. 10–14 (“we object to any continuance of the trial date. We’re prepared to move forward.”); Hearing Tr. Feb. 18, 2025, p. 181, ll. 6–23. Defense closing argument at RT 10, pp. 49–52 (Plaintiff “changed his story to avoid a Vehicle Code violation”) is pleaded as

judicial-estoppel / scienter evidence of the payoff from that structural channel, not as an injury-producing act in lieu of Paragraphs 4, 107, and 112.

(c) **Reliance:** Plaintiff relied on Defendants’ Phase One silence by not taking the procedural steps enumerated in Paragraph 95 above.

(d) **Meritorious Underlying Case:** Plaintiff had a meritorious negligence claim. The 911 audio and body-worn camera footage contained a layered recital of core liability evidence: (a) Abdelhalim’s party admission (“I barely hit him with anything”); (b) the operator’s direct question (“you hit a pedestrian?”) and Abdelhalim’s affirmative response (“yeah”); (c) Plaintiff’s own voice on the 911 recording and BWC confirming the strike; and (d) independent BWC eyewitness corroboration (Justin Rosemond). The jury returned only a 9–3 verdict (the minimum civil majority), demonstrating that a single juror changing sides would have altered the outcome. As **corroboration of the meritorious-case element only** (and not as injury-producing acts in this independent action), the merits record includes Abdelhalim pre-impeachment responses at RT 8, pp. 34–35 (“no contact”) and p. 113, ll. 11–17 (“didn’t touch” / “didn’t hit”).

119. Alternatively, if the Court finds that any Defendant acted without fraudulent intent, Plaintiff asserts extrinsic mistake: the file-transfer omission, whether negligent or intentional, prevented successor counsel from making accurate representations to the tribunal and prevented Plaintiff from receiving a fair hearing.

120. Plaintiff is entitled to vacatur of the April 25, 2025 judgment and an order granting a new trial on a truthful record.

SECOND CAUSE OF ACTION

(Fraudulent Concealment)

(By Plaintiff Against Chambers, CSK, PSA, and Navaratnasingham)

121. Plaintiff incorporates by reference all preceding paragraphs.

122. Under OCM Principal Opportunities Fund v. CIBC World Markets Corp. (2007) 157 Cal.App.4th 835, 859, the elements of fraudulent concealment are: (1) concealment of a material fact; (2) a duty to disclose; (3) intent to defraud; (4) reliance; and (5) resulting damages.

123. Defendants concealed the material fact that the 911/BWC/CAD materials had been produced to defense counsel in August–September 2022 and addressed in sworn deposition testimony (including the September 30, 2022 Abdelhalim deposition with Chambers present).

124. Chambers and CSK had a duty to disclose the production history when transferring the defense file to successor counsel PSA. PSA and Navaratnasingham had a continuing duty under Cal. Rules Prof. Conduct, rule 3.3, to correct their prior false statements to the tribunal after discovering the Dolan origin of the materials.

125. Defendants intended to defraud, or acted with reckless disregard for the truth, by transferring the file without the production history (Chambers/CSK) and by making the “news to me” and “unknown provenance” representations to the tribunal (PSA/Navaratnasingham).

126. Plaintiff relied on the concealment by not taking the procedural steps enumerated in Paragraph 95.

127. Plaintiff was damaged by the resulting exclusionary rulings and the defense verdict.

128. The fraudulent concealment was noncommunicative institutional conduct—file handling, production-history omission, institutional custody failures—that falls outside the litigation privilege under Kimmel v. Golland (1990) 51 Cal.3d 202, 211–212 (communications versus conduct) and Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1058 (noncommunicative acts are privileged only if “**necessarily related**” to a privileged communication). The May 4, 2023 file transfer and production-history omission are not the execution of any particular privileged communication; they are custodial hand-offs that fail Silberg v. Anderson (1990) 50 Cal.3d 205, 212–214 prong one (not a “communication” to a tribunal). Jacob B. v. County of Shasta (2007) 40 Cal.4th 948, 960 forbids extending § 47(b) by analogy where the communicative core of the statute is absent. Seltzer v. Barnes (2010) 182 Cal.App.4th 953, 970; Gallanis-Politis v. Medina (2007) 152 Cal.App.4th 600, 611. Action Apartment Ass’n v. City of Santa Monica (2007) 41 Cal.4th 1232, 1242–1247 (extrinsic-fraud exception).

THIRD CAUSE OF ACTION

(Intentional Misrepresentation)

(By Plaintiff Against Chambers and Navaratnasingham)

1 129. Plaintiff incorporates by reference all preceding paragraphs.

2 130. Under Civ. Code §§ 1709–1710, the elements of intentional misrepresentation (deceit) are:
3 (1) a misrepresentation of a material fact; (2) knowledge of falsity; (3) intent to induce re-
4 liance; (4) justifiable reliance; and (5) resulting damages.

5 131. During Chambers’ tenure as defense counsel through May 4, 2023, Chambers and CSK did
6 not serve any written discovery objection, meet-and-confer letter, or motion challenging the
7 authenticity, foundation, or provenance of the 911 audio, body-worn camera footage, or CAD
8 logs after those materials were produced and after sworn deposition course including the
9 August 18, 2022 Rosario deposition and the September 30, 2022 Abdelhalim deposition
10 (Chambers present; 911-related testimony). This course of **non-action and acquiescence**
11 was conduct on which Plaintiff reasonably relied to conclude authentication was not a live
12 dispute during Phase One. Count 3 is not limited to affirmative misstatements; it includes the
13 misleading effect of silence where disclosure was due. If verified written lulling communi-
14 cations (email subjects, letters, or calls with confirmatory memos) are later identified, Plain-
15 tiff will amend to plead them with dates and verbatim quotes. **Defense judicial-admission**
16 **framing:** In a defensive pleading filed in this action (Case No. CGC-25-631801; Clerk File
17 No. **10157174**), Defendants stated that on May 4, 2023, Chambers (and CSK) transferred
18 the defense file to PSA “**without ensuring proper documentation and conveyance of the**
19 **production history to successor counsel.**” (p. 6, ll. 15–18; Exhibit J.) That framing—
20 Defendants’ own pleading in this case—corroborates that **production-history conveyance**
21 was incomplete or inadequate in connection with the substitution, consistent with Plaintiff’s
22 theory of Phase One concealment and Phase Two court-facing misalignment.

23 132. Navaratnasingham made the following misrepresentations to the tribunal:

- 24 (a) MIL No. 17 (Jan. 17, 2025): “Defendant has no idea where this 911 call log or audio recording
25 came from.”
26 (b) Feb. 18, 2025 hearing: “This is news to me.”
27 (c) Jan. 27, 2025 hearing: defense characterization of a witness as “a lady... no link to this
28 accident” and related framing. (Hearing Tr. Jan. 27, 2025, p. 16, ll. 17–22.)

(d) Jan. 27, 2025 hearing: stacked foundation attack in the same posture. (Hearing Tr. Jan. 27, 2025, p. 19, ll. 7–10.)

133. Each misrepresentation was material because it induced tribunal rulings that excluded evidence and denied Plaintiff a fair hearing.

134. Navaratnasingham had knowledge of falsity or reckless disregard for the truth because: (a) the defense file contained the September 30, 2022 Abdelhalim deposition transcript (Chambers present; 911-related testimony) and related discovery materials; (b) the February 1, 2024 Reyna subpoena to SFPD was in PSA’s own files; and (c) the April 16, 2025 admission (“provided by Dolan”) demonstrates casual familiarity with the production history.

135. Plaintiff justifiably relied on the tribunal’s acceptance of the misrepresentations by not further opposing the MILs or seeking reconsideration.

136. Plaintiff was damaged by the resulting exclusionary rulings and the defense verdict.

137. This count is limited to out-of-court lulling (Chambers) and tribunal-directed misrepresentations that fall within the extrinsic-fraud exception to the litigation privilege under Action Apartment Association v. City of Santa Monica (2007) 41 Cal.4th 1232. Plaintiff does not seek damages for statements made to the jury.

FOURTH CAUSE OF ACTION

(Aiding and Abetting, Ratification, and Civil Conspiracy)

(By Plaintiff Against CSAA)

138. Plaintiff incorporates by reference all preceding paragraphs.

139. Under Fiol v. Doellstedt (1996) 50 Cal.App.4th 1318, a person who aids and abets a tort is jointly liable with the tortfeasor.

140. Under Doctors’ Company v. Superior Court (1989) 49 Cal.3d 39, aiding-and-abetting claims against insurers are cognizable where the insurer acts outside its normal role.

141. CSAA aided and abetted the fraudulent concealment, intentional misrepresentation, attorney deceit pleaded in Count 6, and constructive fraud pleaded in Count 7 through the same three-prong agency framework pleaded in Paragraphs 48–51 (funding and operational control of the defense; approving and directing the **specific litigation positions** that became court-facing

misrepresentations; ratifying the May 4, 2023 file transfer and production-history omission). Without duplicating Paragraph 51, CSAA cannot sever that chain through panel-counsel substitution mid-litigation. CSAA aided and abetted by:

- (a) Retaining and funding Chambers/CSK, who transferred the defense file without the production history;
- (b) Approving the substitution to PSA;
- (c) Continuing to fund and direct PSA after the substitution;
- (d) Approving or acquiescing in the MIL strategy that misrepresented provenance to the tribunal;
- (e) Accepting the benefit of the resulting verdict.

141A. **Civil conspiracy as a joint-liability theory (not a freestanding tort).** Under Applied Equipment Corp. v. Litton Saudi Arabia Ltd. (1994) 7 Cal.4th 503, civil conspiracy is not an independent tort; it is a theory that **attaches** to an underlying wrongful act. Here, Plaintiff alleges an agreement or common understanding among CSAA, prior panel counsel (Chambers/CSK), and successor panel counsel (PSA) and its attorneys to pursue the two-phase pattern pleaded in Paragraphs 29–47: Phase One silence and file custody regarding the 911/BWC/CAD production history, followed by Phase Two court-facing misrepresentations. The May 4, 2023 substitution (Paragraphs 34–39) is alleged as the **inter-firm / inter-counsel** handoff through which the production-history omission was executed and perpetuated, not merely as CSAA-in-the-abstract. The underlying wrongful acts to which this conspiracy theory attaches are the torts pleaded in Counts 2, 3, 6, and 7.

142. Under Civ. Code §§ 2307 and 2310, CSAA ratified the conduct of its agents by accepting the benefits of the verdict with knowledge of the material facts.

143. CSAA is liable as principal under Civ. Code § 2338 for the fraudulent representations of its agents made within the scope of their retained authority. Zhang v. Superior Court (2013) 54 Cal.4th 826 (no categorical insurer-immunity bar to the principal-liability theories pleaded here).

FIFTH CAUSE OF ACTION

(Declaratory Relief)

1 (By Plaintiff Against All Defendants)

2 144. Plaintiff incorporates by reference all preceding paragraphs.

3 145. An actual controversy exists between Plaintiff and Defendants concerning: (a) whether the
4 April 25, 2025 judgment was procured by extrinsic fraud; (b) whether Defendants are estopped
5 from contesting the authenticity or provenance of the 911/BWC/CAD materials; (c) whether
6 Plaintiff is entitled to vacatur and a new trial; and (d) whether Defendants breached duties of
7 candor supporting constructive fraud under Civ. Code § 1573 as pleaded in Count 7.

8 146. Plaintiff seeks a judicial declaration that:

9 (a) The April 25, 2025 judgment in CGC-21-594102 is voidable for extrinsic fraud;

10 (b) Defendants are judicially estopped from asserting positions inconsistent with the April 16,
11 2025 “Dolan” admission;

12 (c) Defendants are estopped by their 883-day silence from contesting authenticity or provenance
13 of the 911/BWC/CAD materials;

14 (d) The issues enumerated in Paragraph 23 were not adjudicated in the underlying trial and are
15 not subject to collateral estoppel.

16 **SIXTH CAUSE OF ACTION**

17 **(Attorney Deceit — Bus. & Prof. Code § 6128(a))**

18 (By Plaintiff Against Chambers, Navaratnasingham, and Reyna)

19 147. Plaintiff incorporates by reference all preceding paragraphs.

20 148. Bus. & Prof. Code § 6128(a) provides: “Every attorney is guilty of a misdemeanor who ...

21 (a) Is guilty of any deceit or collusion, or consents to any deceit or collusion, with intent to
22 deceive the court or any party. ... In addition to the punishment prescribed ..., any person
23 is liable to a party who is injured, and damaged thereby, for the amount of any damages
24 sustained, treble damages and reasonable attorney’s fees.”

25 149. Chambers (Bar No. 132394) engaged in deceit by: (a) transferring the defense file to succes-
26 sor counsel without the production history, knowing or recklessly disregarding that successor
27 counsel would rely on the incomplete file to make representations to the tribunal; and (b)
28 failing to correct the resulting misrepresentations after they were made.

- 1 150. Navaratnasingham (Bar No. 252686) engaged in deceit by: (a) signing and filing MIL No. 17
2 asserting “Defendant has no idea where this 911 call log or audio recording came from”
3 when the defense file contained evidence of the production history; (b) stating “This is news
4 to me” at the February 18, 2025 hearing after Jessup testified the materials were produced
5 to defense counsel; (c) failing to correct these misrepresentations after discovering their fal-
6 sity; and (d) representing to the Court in MIL No. 17 that “911 recordings are inadmissi-
7 ble hearsay” without acknowledging the controlling exceptions under Evid. Code §§ 1220
8 (party admission), 1240 (spontaneous declaration), 1241 (contemporaneous statement), 1271
9 (business records), 1280 (official records), and **1414(b)** (authentication by conduct), each of
10 which independently bears on admissibility. A categorical misstatement of controlling law to
11 the tribunal—including failures on hearsay **and** authentication—constitutes deceit within the
12 meaning of Bus. & Prof. Code § 6128(a) independent of the provenance dispute.
- 13 151. Reyna (Bar No. 347323) engaged in deceit by: (a) issuing the February 1, 2024 Complex
14 subpoena to SFPD for the identical materials, demonstrating knowledge of their existence,
15 then acquiescing in MIL representations that they were of “unknown provenance”; and (b)
16 stating at trial that the supplemental police report was “not anything that we received as part
17 of the subpoena” when the subpoena response was in PSA’s files.
- 18 152. Each Defendant intended to deceive the court by inducing rulings that excluded evidence and
19 denied Plaintiff a fair hearing.
- 20 153. The conduct alleged constitutes illegal conduct as a matter of law under Flatley v. Mauro
21 (2006) 39 Cal.4th 299, 320–325, and parallels Lefebvre v. Lefebvre (2011) 199 Cal.App.4th
22 696, 704–705. The conduct violates Penal Code §§ 115 (filing false or forged instrument),
23 118 (perjury), 132 (offering false evidence), 134 (preparing false evidence), 182(a)(5) (con-
24 spiracy to obstruct justice), and 127 (subornation of perjury, by analogy to inducing false
25 representations to the tribunal).
- 26 154. Plaintiff was injured and damaged by the resulting exclusionary rulings and defense verdict.
- 27 155. Plaintiff is entitled to treble damages and reasonable attorney’s fees under Bus. & Prof. Code
28 § 6128(a).

1 156. The § 6128(a) claim triggers the Flatley illegal-conduct exception to the anti-SLAPP statute
2 (including the Lefebvre pattern described in Paragraph 153) and falls outside the litigation
3 privilege because it is a statutory cause of action expressly authorized by the Legislature for
4 injured-party claims against attorneys for deceit of the court.

5 **SEVENTH CAUSE OF ACTION**

6 **(Constructive Fraud — Civ. Code § 1573)**

7 (By Plaintiff Against Chambers, CSK, Navaratnasingham, Reyna, and PSA, in the alternative to
8 Counts 2 and 3)

9 157. Plaintiff incorporates by reference all preceding paragraphs.

10 158. Constructive fraud is pleaded pursuant to Civ. Code §§ 1572 and 1573 is the breach of a legal
11 or equitable duty flowing from a confidential or fiduciary relationship, without proof of intent
12 to deceive. (Assilzadeh v. California Federal Bank (2000) 82 Cal.App.4th 399, 415.)

13 159. The elements are: (1) a confidential or fiduciary relationship, or a duty giving rise to an obli-
14 gation of candor; (2) breach of that duty by a misleading act or nondisclosure; (3) inducement;
15 and (4) resulting harm. (Assilzadeh, supra, 82 Cal.App.4th at p. 415; Civ. Code § 1573.)

16 160. A duty of candor to the tribunal arises from Cal. Rules Prof. Conduct, rule 3.3, and from the
17 institutional role of defense counsel as an officer of the court. The tribunal’s reliance on that
18 duty was articulated on February 28, 2025, when the Court stated that counsel “are an officer
19 of the Court” and are “supposed to conduct themselves appropriately before the Court.” (Hr’g
20 Tr. Feb. 28, 2025, p. 292, ll. 1–7.) That relationship and duty are independent of whether any
21 particular defendant harbored the specific intent to deceive required for Count 3.

22 161. Defendants breached the duty of candor by the same course of conduct pleaded in Counts
23 2 and 3: production-history omission on the May 4, 2023 file transfer (Paragraphs 34–39);
24 883-day silence and acquiescence (Paragraphs 29–33); and court-facing misrepresentations
25 regarding receipt and provenance (Paragraphs 40–47, 132–136).

26 162. The tribunal and Plaintiff were induced to rely on those breaches: the Court structured rulings
27 on continuity, authentication, and burden of production in reliance on defense representations
28 (Paragraphs 44A, 46–47, 372–414); Plaintiff reasonably deferred authentication, subpoena,

and sequencing steps in reliance on Phase One silence (Paragraphs 95–97).

163. Plaintiff suffered the same harm pleaded in Counts 2 and 3: exclusionary rulings, lost procedural windows, and a liability verdict reached without a fair opportunity to present the 911/BWC/CAD materials on a truthful record.

164. Count 7 is pleaded **in the alternative** to Counts 2 and 3 for the same nucleus of facts. If any defendant defeats Count 3 on scienter, Count 7 preserves a constructive-fraud channel that does not require proof of intent to deceive.

165. This count is not premised on statements made to the jury for the jury to weigh. The constructive-fraud theory tracks noncommunicative file-custody conduct and tribunal-directed misrepresentations within the same pleading-stage channels as Count 2: noncommunicative institutional conduct under Kimmel v. Goland (1990) 51 Cal.3d 202, 211–212 and Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1058; extrinsic fraud on the tribunal under Action Apartment Ass’n v. City of Santa Monica (2007) 41 Cal.4th 1232, 1242–1247; and illegal conduct as a matter of law under Flatley v. Mauro (2006) 39 Cal.4th 299, 320–325 where the record supports the pleaded procurement pattern.

VIII. PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment against Defendants as follows:

1. **Equitable Vacatur:** An order vacating the April 25, 2025 judgment in Rosario v. Abdelhalim, CGC-21-594102, and granting Plaintiff a new trial on a fair and truthful record;
2. **Declaratory Relief (CCP § 1060):** A judicial declaration that (a) the judgment was procured by extrinsic fraud; (b) Defendants are estopped from contesting the authenticity or provenance of the 911/BWC/CAD materials; and (c) the issues enumerated in Paragraph 23 were not adjudicated in the underlying trial. This prayer seeks **declaratory** relief only as **final** relief after trial or disposition—not a preliminary injunction or TRO;
3. **Compensatory Damages:** Compensatory damages according to proof for lost procedural opportunities and the resulting unfair verdict, including on the Seventh Cause of Action (Civ. Code § 1573) where applicable;

- 1 4. **Treble Damages:** Treble damages under Bus. & Prof. Code § 6128(a) against Defendants
2 Chambers, Navaratnasingham, and Reyna;
- 3 5. **Punitive Damages:** Punitive damages under Civ. Code § 3294 against Defendants Chambers,
4 CSK, PSA, Navaratnasingham, and Reyna for fraud, malice, and oppression on Counts 2,
5 3, and 6 (not on Count 7 alone). The escalating course of conduct (MIL suppression on
6 January 17, 2025; dismissal motion under CCP § 581(d) on January 28, 2025; “news to me”
7 misrepresentation on February 18, 2025; protective-order obstruction on February 28, 2025;
8 and trial-day contradictions on April 16–17 and April 22, 2025) supports punitive damages
9 under Civ. Code § 3294 for fraud, malice, and oppression;
- 10 6. **Attorney’s Fees:** Reasonable attorney’s fees under Bus. & Prof. Code § 6128(a) and, where
11 applicable, CCP § 1021.5;
- 12 7. **Discovery/Monetary Sanctions:** Evidence sanctions and monetary sanctions under CCP §
13 2023.030 for discovery misuse, including an order deeming the authenticity of the 911/BWC/CAD
14 materials established; **any monetary sanctions order requested or imposed in a single or-**
15 **der shall not exceed five thousand dollars (\$5,000)** so as not to create an interlocutory
16 appeal as of right under **CCP § 904.1(a)(12)**; Plaintiff may seek **additional** sanctions in **sep-**
17 **arate** orders each capped at five thousand dollars (\$5,000) if the Court deems multiple orders
18 appropriate;
- 19 8. **CCP § 473(d) Vacatur:** In the alternative, relief under CCP § 473(d) setting aside the judg-
20 ment as procured through misconduct of the prevailing party’s counsel;
- 21 9. **Restitution:** Restitution of any amounts paid, levied, or garnished pursuant to the vacated
22 judgment, **including defense costs taxed** under the April 30, 2025 memorandum of costs
23 and August 8, 2025 order on memorandum of costs in CGC-21-594102, **according to proof**
24 after review of the register of actions and any enforcement filings;
- 25 10. **Costs of Suit:** Costs of suit incurred herein;
- 26 11. **Further Relief:** Such other and further relief as the Court deems just and proper.
- 27

1 **IX. VERIFICATION**

2 I, FRANCISCUS DYLAN ROSARIO, am the Plaintiff in this action. I have read the foregoing
3 Second Amended Complaint and know the contents thereof. The matters stated therein are true of
4 my own knowledge, except as to those matters which are stated on information and belief, and as
5 to those matters, I believe them to be true.

6 I declare under penalty of perjury under the laws of the State of California that the foregoing is
7 true and correct.

8 Executed on _____, 2026, at Rohnert Park, California.

9 _____
10 FRANCISCUS DYLAN ROSARIO
11
12 _____

13 **EXHIBIT APPENDIX**

14 Exhibit designations and separator sheets: Cal. Rules of Court, rule 3.1110(f). Record citations
15 use **RT** (reporter’s transcript volume by trial day), **CT** (clerk’s transcript volume), and **Hearing Tr.**
16 (hearing date) forms consistent with Cal. Rules of Court, rules 3.1110(f) and 3.1306(c), and
17 Evidence Code sections 452 and 453.

18 **E-filing — electronic bookmarks (CRC 3.1110(f)(4)):** The filed PDF of this complaint (includ-
19 ing the Exhibit Appendix) must include a separate electronic bookmark for each exhibit designa-
20 tion (A through R) and for each major appendix subsection (for example, Exhibit R — expanded
21 matrix), so the navigation pane matches the paper separator structure.

22 The following exhibits are attached hereto and incorporated by reference. **Exhibit R** is the ex-
23 panded gravamen matrix referenced in Paragraph 108.

Designation	Description
A	Substitution of Attorney (Transaction ID #69953800, filed May 4, 2023)

Designation	Description
B	MIL No. 6 and MIL No. 17 (filed January 17, 2025; CT Vol. 1, pp. 149–151, 238)
C	Hearing Tr. Feb. 18, 2025, excerpt (p. 141, ll. 4–11, MSC-date and “news to me”; fuller excerpts, Exhibit M)
D	RT 7, p. 213, ll. 13–15 (Navaratnasingham “provided by Dolan” admission)
E	RT 8, p. 108, l. 28 (Abdelhalim authentication: “Yes. That is my voice.”)
F	CSAA Feb. 25, 2021 Denial Letter
G	SFPD Report 210079556 (BWC produced under Compex subpoena includes the independent Rosemond eyewitness statement)
H	Compex Subpoena Order CA1147102-021 (filed Feb. 1, 2024)
I	September 30, 2022 Subhi Abdelhalim deposition transcript (Chambers appearances; excerpts re 911 call)—certified page/line cites to be supplied on supplement
J	Case No. CGC-25-631801, Defensive Pleading (Clerk File No. 10157174), p. 6, ll. 15–18 (Chambers/CSK transfer “without ensuring proper documentation and conveyance of the production history to successor counsel”)

Designation	Description
K	Hearing Tr. Jan. 27, 2025, excerpts (p. 7, ll. 10–14; p. 15, ll. 1–16 and ll. 10–16; p. 16, ll. 17–22; p. 19, ll. 7–10; p. 55, ll. 8–19; p. 57, ll. 10–14)
L	Hearing Tr. Jan. 28, 2025, p. 90, ll. 17–33 (CCP § 581(d) dismissal motion)
M	Hearing Tr. Feb. 18, 2025, excerpts (p. 139, l. 11; p. 140, ll. 20–22; p. 141, ll. 4–11 and ll. 18–23; p. 145, ll. 4–18; p. 147, ll. 5–10; p. 151, ll. 1–25; p. 164, ll. 14–20; p. 181, ll. 6–23)
N	Hearing Tr. Feb. 28, 2025, pp. 291–294 (officer-of-court ruling; burden-shift ruling)
O	RT 7 excerpts (p. 156, ll. 5–16 and ll. 24–28; p. 162, ll. 4–12; pp. 163–164; p. 207, ll. 15–21; p. 208, ll. 1–12; p. 213, ll. 13–15)
P	RT 8 excerpts (pp. 12–14, pp. 34–35, p. 108, pp. 111–113, p. 144, p. 146)
Q	RT 10, pp. 49–52 (closing argument)
R	Gravamen matrix by cause of action (<u>Park</u> / <u>Bonni</u>); expanded reference copy in subsection below (incorporated by Paragraph 108)

Exhibit R — Gravamen Matrix (Expanded Reference Copy)

Defense characterization vs. SAC allegations

#	Defense abstraction (Anti-SLAPP framing)	SAC actual allegation	True gravamen (<u>Park</u> / <u>Bonni</u>)	Protected activity?	SAC ¶
1	“Privileged litigation conduct”	Out-of-court communica- tions inducing reliance on evidence resolution	Extrinsic fraud channel	NO	¶¶ 2, 29– 45, 114– 120
2	“Litigation activity”	File transfer without proper production- history conveyance	Noncommunicative institutional conduct	NO	¶¶ 34– 39, 121– 128
3	“Judicial proceeding”	Misrepresentations to Court about receipt and provenance	Tribunal reliance, process corruption	Exception (<u>Flatley</u> / <u>Action</u> <u>Apartment</u>)	¶¶ 40– 47, 147– 153
4	“Defending the insured”	CSAA direction and ratification of deceptive conduct as principal	Agency liability, Civ. Code § 2338; conspiracy as joint-liability theory	NO	¶¶ 7, 48– 57, 138– 143, 141A

#	Defense abstraction (Anti-SLAPP framing)	SAC actual allegation	True gravamen (<u>Park</u> / <u>Bonni</u>)	Protected activity?	SAC ¶
5	“Protected petitioning” (implied)	Procedural- window narrowing through induced rulings	Structural hearing impairment	NO	¶¶ 46– 47, 118
6	“Communications made during proceedings”	Two-phase pattern: out-of-court lulling, then court-facing shift	Coordinated extrinsic-fraud scheme	Exception applies	¶¶ 2, 45, 108– 118
7	“Negligent litigation”	Same production- history and tribunal-facing course without scienter	Constructive fraud (Civ. Code § 1573)	NO	¶¶ 157– 165

Eight sentences from Defendants’ briefing that misstate California law (for hearing index)

#	Topic	Why it misstates the law
1	Extending privilege to pre-litigation statements categorically	Privilege analysis remains tied to communicative acts; it does not subsume noncommunicative fraud channels.

#	Topic	Why it misstates the law
2	<u>Flatley</u> finality paragraph as universal bar	Omits <u>Flatley</u> 's illegal-conduct exception (Paragraphs 118, 153).
3	Resolving doubts in favor of privilege before <u>Park</u> step one	<u>Park</u> requires gravamen isolation first.
4	Using <u>Park</u> to support immunity for any litigation-related claim	<u>Park</u> requires identification of the injury-producing act.
5	Collateral estoppel as automatic bar	Requires primary-right match under <u>Crowley</u> / <u>Mycogen</u> / <u>Boeken</u> (Paragraph 24).
6	Blanket protection for "all" litigation statements	Does not address extrinsic-fraud exception.
7	Equalizing § 425.16 and § 47(b) to erase exceptions	Each statute has independent exception channels pleaded in Paragraphs 108–109.
8	"Plaintiff was not denied his day in court"	Merits determination; the court must accept well-pleaded fraud allegations as true (<u>ABF Capital</u> ; Paragraph 15).

/s/ Franciscus Dylan Rosario



Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**BENCH BRIEF RE LEAVE STANDARD
AND PROPOSED SAC
COGNIZABILITY**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

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I. SCOPE OF THIS BRIEF

This bench brief is submitted in support of Plaintiff’s Motion for Leave to File the Second Amended Complaint (SAC). Its scope is expressly limited to the leave-to-amend standard and the facial cognizability of the SAC. This brief does not address any pending demurrer or anti-SLAPP motions directed at prior iterations of the pleadings, nor does it present arguments properly reserved for opposition briefing. Its sole purpose is to demonstrate that the proposed SAC clears the threshold for amendment.

II. LEAVE-TO-AMEND STANDARD

California law applies a policy of “great liberality” in allowing amendments to pleadings at any stage of the proceeding so that cases may be justly resolved on their merits. (Mabie v. Hyatt (1998) 61 Cal.App.4th 581, 596.) The rule of great liberality applies unless the opposing party demonstrates prejudice. (Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 761.) Leave to amend should be granted if there is any reasonable possibility that the plaintiff can state a good cause of action. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

III. DEMURRER-TEST / FOUR-CORNERS ACCEPTANCE OF FACTS

When evaluating whether an amended pleading is legally sufficient, the court must assume the truth of all properly pleaded material facts. (Blank v. Kirwan, supra, 39 Cal.3d at p. 318.) The court does not weigh the evidence or determine the probability of success. The sole question at this threshold stage is whether, accepting the allegations as true, the pleading states a claim.

IV. PRIMARY-RIGHTS ANALYSIS FOR COUNTS 1–7

The proposed SAC is not barred by collateral estoppel or res judicata. Those doctrines require that the identical issue was “necessarily decided” in the prior action (Crowley v. Katleman (1994) 8 Cal.4th 666) or that the claims involve the “same primary right” (Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 904; Boeken v. Philip Morris USA, Inc. (2010) 48 Cal.4th 788, 798). The underlying negligence trial adjudicated a motor vehicle collision; it did not and could not adjudicate whether the defense procured the verdict by extrinsic fraud, concealment of discovery history, or deceit of the tribunal. The primary right at issue here—the right to a fair adversary

1 hearing free of extrinsic fraud—is distinct from the primary right to bodily integrity at issue in the
2 underlying trial.

3 **V. PARK V. BOARD OF TRUSTEES GRAVAMEN ISOLATION**

4 Under Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1062–1064,
5 courts must identify the specific “injury-producing act” underlying each claim when evaluating
6 statutory immunities. The proposed SAC meticulously isolates the injury-producing acts as non-
7 communicative institutional conduct (such as the failure to convey the production history during
8 the file transfer) and extrinsic fraud on the tribunal. The SAC does not premise liability on trial
9 advocacy or statements made to the jury for them to weigh.

10 **VI. EXTRINSIC-FRAUD DOCTRINE**

11 Extrinsic fraud occurs when a party is “deliberately kept in ignorance of the action or proceeding,
12 or in some other way fraudulently prevented from presenting his claim or defense.” (Kulchar v.
13 Kulchar (1969) 1 Cal.3d 467, 471.) An independent equitable action to set aside a judgment pro-
14 cured by extrinsic fraud is a recognized mechanism in California and is not barred by res judicata.
15 (Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028, 1034–1036; Olivera v. Grace (1942) 19
16 Cal.2d 570, 575–576.)

17 **VII. STATUTORY BASIS FOR THE SECTION 6128(A) COUNT**

18 Business and Professions Code section 6128(a) a statutory cause of action against an attorney who
19 engages in deceit or collusion with intent to deceive the court or any party. The SAC pleads that
20 specific court-facing misrepresentations—asserting that materials received in discovery were of
21 “unknown provenance”—constituted actionable deceit under this section.

22 **VIII. WHY EACH SAC COUNT STATES A CLAIM**

- 23 • **Count 1 (Equitable Vacatur):** Plausibly alleges the Kulchar elements of extrinsic fraud
24 preventing Plaintiff from fully presenting his case.
- 25 • **Count 2 (Fraudulent Concealment):** Alleges the specific duty and failure of prior and suc-
26 cessor counsel to convey and acknowledge the true discovery history of the 911 audio and
27 CAD records.

- **Count 3 (Intentional Misrepresentation):** Details specific representations made to the tribunal that were factually false based on the defense’s own file contents.
- **Count 4 (Aiding & Abetting):** Adequately pleads CSAA’s role as the institutional principal directing, funding, and ratifying the conduct.
- **Count 5 (Declaratory Relief):** Presents an actual controversy regarding the validity of the underlying judgment.
- **Count 6 (Section 6128(a)):** Tracks the statutory elements of attorney deceit against the tribunal.
- **Count 7 (Constructive Fraud, Civ. Code § 1573):** States the Assilzadeh v. California Federal Bank (2000) 82 Cal.App.4th 399, 415 elements on the same nucleus of facts as Counts 2–3, without requiring proof of intent to deceive. The February 28, 2025 officer-of-the-court colloquy (Hr’g Tr. p. 292, ll. 1–7) and the April 16, 2025 admission (RT 7, p. 213, ll. 13–15) supply the duty and reliance anchors at the pleading stage.
- **Count 4 (conspiracy label):** The Fourth Cause adds **civil conspiracy as a joint-liability theory** that must attach to underlying torts; it is not pleaded as a freestanding conspiracy tort (Applied Equipment Corp. v. Litton Saudi Arabia Ltd. (1994) 7 Cal.4th 503).

IX. CONCLUSION

The proposed Second Amended Complaint is facially cognizable, rests on established equitable and statutory grounds, and satisfies the liberal standard for leave to amend. Leave to file should be granted.

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